



File No.: EXP202202415

IMI Reference: A56ID 336608

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following Background, Established Facts, and Legal Grounds, the Director of the Spanish Agency for Data Protection resolves to adopt this resolution of the sanctioning procedure.

TABLE OF CONTENTS

BACKGROUND.....2

ESTABLISHED FACTS.....10

LEGAL GROUNDS.....13

I Competence.....14

II Preliminary Issues.....14

III Allegations Raised.....14

In relation to the allegations raised against the initiation agreement of the present sanctioning procedure, responses are provided according to the order presented by

GLOVO:.....15

FIRST.- ON GLOVO'S INTERNAL PROCESSES.....15

SECOND.- ON THE METHOD OF REQUESTING THE RIGHT OF ACCESS

.....17

THIRD.- ON THE AWARENESS OF THE EXERCISE OF THE RIGHT AND
THE IMMEDIATE ACTION OF GLOVO. THE TIMELY NON-COMPLIANCE OF
INTERNAL PROCEDURES BY SPECIFIC EMPLOYEES AND THE
DISPROPORTIONALITY OF THE PROPOSED SANCTION.....19

FOURTH.- OTHER RELEVANT PROCEDURES.....24

FIFTH.- ON THE EVOLUTION OF GLOVO.....25

In relation to the allegations raised against the resolution proposal of the present sanctioning procedure, responses are provided according to the order presented by

GLOVO:.....25

FIRST.- ON THE EVENTS OCCURRED IN THE MANAGEMENT OF THE
REQUEST.....25

SECOND.- ON THE FAILURE TO ATTEND TO THE RIGHT OF ACCESS.....31

THIRD.- ON THE OPENING OF A SANCTIONING PROCEDURE INSTEAD OF A
RIGHTS PROTECTION.....36

FOURTH.- ON THE FAILURE TO TRANSFER THE COMPLAINT TO THE
DATA PROTECTION OFFICER.....43

FIFTH.- ON THE GUILT OR NEGLIGENCE OF GLOVO.....44

SIXTH.- ON AGGRAVATING CIRCUMSTANCES.....56

IV Right of access of the interested party.....60

V Classification and qualification of the infringement of Article 15 of the
GDPR.....62

VI Sanction for the infringement of Article 15 of the GDPR.....63

the Director of the Spanish Agency for Data Protection RESOLVES:.....64

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on September 30, 2021, with the Urząd Ochrony Danych Osobowych, the data protection authority of Poland. The complaint is directed against GLOVOAPP23, S.A. with NIF A66362906 (hereinafter, GLOVO). The reasons for the complaint are as follows:

The complainant requested from GLOVO the recording of their conversation with a ***POSITION.1 of GLOVO on August 19, the time when the complainant entered the GLOVO application that same day, information regarding the cancellation of an order made that same day including the decisions made

by GLOVO employees and their reasoning, and the work schedule for that same day with the changes made by the system and by the employees. The complainant requested this information based on Article 15 of the General Data Protection Regulation (GDPR), to which GLOVO responded by denying access to the conversation.

Along with the complaint, the following is provided:

- Printout of an email dated August 19, 2021, at 14:31 sent by support@glovo.mail.kustomerapp.com to the complainant in Polish with the following content (unofficial translation): "Thank you for contacting us. We have received your communication and are sending this message automatically to confirm it. Our customer service will contact you shortly. Regards!"

This email responds to a previous one sent by the complainant on August 19, 2021, at 12:31, with the following content (in Polish original, unofficial translation): "Good morning, please send me the conversation with (...), B.B.B., to my email address, as it will be the basis of my legal case; if that does not happen, I will send you a court order."

- Printout of an email dated August 19, 2021, at 15:30 sent by support@glovo.mail.kustomerapp.com to the complainant in Polish, with the following content (unofficial translation): "Good morning, thank you for contacting Glovo. Unfortunately, we cannot share with you the..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/66

conversation or its fragments. Please inform us what your issue is with our ***POSITION.1. Best regards, Glovo Customer Service."

- Printout of an email dated August 19, 2021, at 20:54 sent by the claimant to support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): "So, in that case, your consultant said that I was blocked in red for doing nothing for 2 hours, and then blocked me for the whole day?"

- Printout of an email dated August 20, 2021, at 08:29 sent by support@glovo.mail.kustomerapp.com to the claimant in Polish, with the following content (unofficial translation): "Good morning, thank you for contacting Glovo. We inform you that 15 minutes before the start of the block you receive a check-in reminder. After that, you must confirm your willingness to work during the hours that have been reserved. You did not confirm that you were ready to work, so the system automatically marked your blocks in red. If you need further support, we invite you to contact us. We will be happy to assist you. Glovo Customer Service."

- Printout of an email dated August 23, 2021, at 14:16 sent by support@glovo.mail.kustomerapp.com to the claimant, in Polish, with the following content: "Good morning, thank you for contacting Glovo. One hour was blocked because your contract was reassigned, the rest because you did not check-in in the application. We inform you that 15 minutes before the start of the block you receive a check-in reminder. After that, you must confirm your willingness to work during the hours that have been reserved. You did not confirm that you were ready to work, so the system automatically marked your blocks in red. If you need further support, we invite you to contact us. We will be happy to assist you. Glovo Customer Service."

- Printout of an email dated August 26, 2021, at 09:56 sent by support@glovo.mail.kustomerapp.com to the claimant in Polish, with the following content (unofficial translation): "Thank you for contacting us. We have received your communication and are sending this message automatically to confirm it. Our customer service will contact you shortly. Regards!"

This email responds to a previous one sent by the claimant on August 26, 2021, at 07:56, with the following content (in Polish original, unofficial translation): "Based on Article 15 of the GDPR, I would like to request the following data:

- conversation log with (...) B.B.B. from August 17 with time per minute for each sentence of this conversation

- the exact time I checked in on August 17 in the application along with the actions taken by your employees that changed this data

- information about the canceled order from ***ADDRESS.1 to Biedronka on August 17, along with the reason for this cancellation and the actions taken by your employees that changed this data
- work plan from August 17 with minute-by-minute information on changes made by the system and your employees.”

C/ Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es
 4/66

- Printout of an email dated August 26, 2021, at 20:09 sent by support@glovo.mail.kustomerapp.com to the claimant in Polish, with the following content (unofficial translation): “Hello, A.A.A.! Thank you for contacting us. Your case has been transferred to another department. Once we have a response, we will pass it on to you. We hope this information is useful, as we are always trying to provide the highest quality in our service. You can count on us. Thank you for your trust. Glovo Customer Service.”
- Printout of an email dated September 3, 2021, at 12:36 sent by support@glovo.mail.kustomerapp.com to the claimant in Polish, with the following content (unofficial translation): “Good morning, Unfortunately, we cannot share that information with you. Can you specify exactly what you are requesting? We remind you that opening multiple chats may slow down your service time. We ask that you use a single chat for this request. Regards, Glovo Customer Service Team.”
- Printout of an email dated September 3, 2021, at 13:10 in which the claimant replies to the previous email sent to support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): “I was requesting the information from August 19 (however, I made a mistake writing August 17). Based on Article 15 of the GDPR, I would like to request the following information:
 - conversation record with (...) B.B.B. from August 17 with time per minute for each phrase of this conversation
 - the exact time I checked in on August 17 in the app along with the actions taken by your employees that changed this data
 - information about the canceled order from ***ADDRESS.1 to Biedronka on August 17, along with the reason for this cancellation and the actions taken by your employees that changed this data
 - work plan from August 17 with minute-by-minute information on changes made by the system and your employees.”

And your company's official response is that you cannot provide that information, right?

- Printout of a screenshot of an email dated September 6, 2021, at 17:22 in which support@glovo.mail.kustomerapp.com replies to the previous email from the claimant in Polish, with the following content (unofficial translation): “Good morning, As we mentioned earlier, we cannot share that information. Best regards, Glovo Customer Service Team.”

SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance between Member States, and the exchange of information, the aforementioned complaint was transmitted on February 24, 2022, and was registered at the Spanish Agency with the entry date at C/

Jorge Juan, 6
 www.aepd.es
 28001 – Madrid
 sedeagpd.gob.es
 5/66

Data Protection (AEPD) the following day. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that GLOVO has its registered office and main establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the data protection authority of Poland, the authorities of Italy, Portugal, and France. All of them under Article 4.22 of the GDPR, since the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On June 6, 2022, the AEPD requested, through the IMI System, the data protection authority of Poland to resend the relevant information of the case.

The data protection authority of Poland shared the requested documentation through the IMI System on June 10, 2022.

FOURTH: On June 24, 2022, in accordance with the then applicable Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FIFTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions of Title VII, Chapter I, Section two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), being aware of the following points:

1. On November 15, 2022, a written response to the information request, submitted on behalf of GLOVO, was received in this Agency, with entry registration number ***REFERENCIA.1, in which the following information was provided, among others:

a) Declaration that the complainant "... has exercised their right of access through this Agency and that Glovo had never before received their request for the right of access through the email address enabled for this purpose, as indicated in the Privacy Policy in effect at the time they exercised their right of access, namely, the email gdpr@glovoapp.com."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/66

b) Indication that, when this access request was received through the AEPD's request, GLOVO forwarded the request to its data protection officer, who responded to the complainant on November 14, 2022, from the address gdpr@glovoapp.com, attaching the 4 documents requested by the complainant in their emails to Glovo's Customer Service.

c) A copy of the email sent by gdpr@glovoapp.com to ***EMAIL.1 (which GLOVO indicates is the complainant's email address), dated November 14, 2022, at 7:30 PM, with the following content:

"Dear Mr. A.A.A.:

36. We confirm that we have received your request to exercise your right of access regarding personal data, in accordance with applicable data protection laws (Regulation EU 2016/679).

37. We are pleased to inform you that after analyzing the requested information and verifying your identity according to the information requested by the Spanish Data Protection Authority (the so-called Data Protection Agency), through the Polish Data Protection Authority, we provide the following information along with the attached documents:

1. Report of the interview with (...) B.B.B. of 19.8.2021

38. A chat is attached (document 1).

2. Exact time of login to the application on 19.8.2021 with a list of actions taken by Glovo employees

39. Attached to the information request (document 2).

3. Information about the cancellation of the order from Spring Square to Biedronka on 19.8.2021

40. Please note that for operational reasons we had to proactively assign an order to another courier so that the user would receive the order in due time. We inform you that after a long time without any activity on your part, we had to assign the order to another courier to receive the product in due time

(see Document 3).

4. Service schedule of 19.8.2021

41. Attached are the actions taken in the system that indicate your schedule and the actions undertaken by Glovo on that date (document 4).

42. We hope this information is useful.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/66

43. Please note that you can read our privacy policy at

<https://glovoapp.com/es/legal/privacy-couriers/>

44. Considering that Glovo participates in the protection of personal data, we remind you that you can exercise your rights of access, rectification, deletion, limitation of processing, data portability, and opposition at any time, using the form available on the Platform or by sending an email to gdp@glovoapp.com. Alternatively, in any case, you can contact the competent data protection authority.

45. Glovo Team

d) A copy of a certificate from the company ***COMPANY.1 indicating that the email mentioned in the previous point was sent on November 14, 2022, at 19:31 hours and was accessed by the recipient on November 14, 2022, at 19:44 hours. This certificate also includes the content of the documents attached to the email.

e) A copy of the “POLITYKA PRYWATNOŚCI DLA KURIERÓW” [Unofficial translation: “Privacy Policy for Couriers”] in Polish from GLOVO. Within this privacy policy, in its section 11, dedicated to the rights of data subjects, it states that “Powyższe prawa mogą być wykonywane poprzez wysłanie wiadomości e-mail na adres gdp@glovoapp.com.” [Unofficial translation: “These rights can be exercised by sending an email to gdp@glovoapp.com.”].

2. On March 30, 2023, the General Subdirector of Data Inspection conducted a search on the website

<https://web.archive.org> obtaining the historical content from August 13, 2021, of the webpage

<https://glovoapp.com/pl/legal/privacy-couriers/>, which contains the privacy policy for couriers of GLOVO, obtaining the following results:

Within the section “11. Rights of data subjects,” it states that “The aforementioned rights may be exercised by sending an email to gdp@glovoapp.com.”

3. According to a query made on March 30, 2023, in the Monitoriza service of Axesor

(<https://monitoriza.axesor.es/>), GLOVO is a type of company “(…)” that, in the year 2021, had a total annual global turnover of ***AMOUNT.1 €, and had ***AMOUNT.2 employees.

EIGHTH: On June 16, 2023, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on the same day this draft decision was transmitted via the IMI system, and the interested authorities were informed that they had four weeks from that moment to raise pertinent and justified objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.5 of the LOPDGDD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/66

Within the deadline for this purpose, the interested control authorities did not present pertinent and justified objections in this regard, so it was considered that all authorities agreed with this draft decision and were bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

NINTH: On July 17, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate

sanctioning proceedings against GLOVO, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), in order to impose a fine of 15,000 euros for the alleged infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR, in which it was indicated that GLOVO had a period of ten days to submit allegations.

This initiation agreement, which was notified to GLOVO in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on July 17, 2023, and July 18, 2023, as stated in the acknowledgment of receipt in the file.

TENTH: On July 17, 2023, GLOVO submitted a document to this Agency stating that it had received a notice of a postal notification sent to this Agency with "Identifier: ***REFERENCE.2," but that they could not find it. They also informed that their current address was Calle Llull, 108 08005 Barcelona and that the corporate form of the entity had changed to S.A., with the correct corporate name being Glovoapp23, S.A.

ELEVENTH: On July 17, 2023, GLOVO submitted a document requesting an extension of the deadline to present allegations.

TWELFTH: On July 19, 2023, the requested extension of the deadline was agreed upon for a maximum of five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The aforementioned agreement was notified to GLOVO on July 20, 2023, as stated in the acknowledgment of receipt in the file.

THIRTEENTH: On August 3, 2023, a document from GLOVO was received by this Agency, in due time and form, in which it presented allegations against the initiation agreement. In these allegations, in summary, it stated that:

- First.- GLOVO has abundant internal procedures and a culture of privacy in its company and acted diligently and proactively to ensure compliance with data protection throughout the company.
- Second.- GLOVO had expressly established that in all cases similar to that of the complainant, all requests should be communicated to its Data Protection Department, but the complainant did not use the designated channels for this purpose.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/66

- Third.- 3.1. A response was provided to the claimant with all the information requested as soon as the transfer of the claim was received by this Agency.

3.2. GLOVO has not acted with intent or negligence.

- Fourth.- Other relevant procedures of this Agency are cited in which the filing of actions was resolved.
- Fifth.- GLOVO has evolved significantly in terms of personal data protection.

FOURTEENTH: On April 16, 2024, the instructing body of the procedure issued a proposal for resolution in which it proposed to impose a fine of 15,000 euros on GLOVO, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR, in which it was indicated that GLOVO had a period of ten days to submit allegations.

This proposal for resolution, which was notified to GLOVO in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on April 26, 2024, as evidenced by the acknowledgment of receipt in the file.

FIFTEENTH: On April 26, 2024, GLOVO submitted a document requesting an extension of the deadline to present allegations.

SIXTEENTH: On April 30, 2024, the instructing body of the procedure agreed to extend the requested deadline by a maximum of five days, in accordance with the provisions of Article 32.1 of the LPACAP. The aforementioned agreement was notified to GLOVO on the same day, as evidenced by the acknowledgment of receipt in the file.

SEVENTEENTH: On May 17, 2024, a document from GLOVO was received by this Agency, in due

time and form, in which it presented allegations to the proposal for resolution. In these allegations, in summary, it stated that:

- First.- GLOVO has numerous technical and organizational measures aimed at ensuring compliance with the applicable regulations on data protection and, especially in relation to the case at hand, the attention to the rights of the data subjects.
- Second.- A response was provided to the request of the data subject. GLOVO made reasonable efforts to ensure that the agents of the support team for the delivery person could identify the requests for the exercise of rights and either communicate them directly to the data protection department or respond to the data subject with the address to which to direct their request, efforts that, due to human error, did not materialize in reality.
- Third.- GLOVO is surprised that, having responded to the data subject first via chat, and subsequently officially by the Data Protection Department, the Agency decides to initiate sanctioning proceedings without proposing the opening of a rights protection procedure.
- Fourth.- GLOVO is surprised that the AEPD does not apply in this case the possibility offered by the LOPDGDD to refer any complaint to the data protection officer before resolving on the admission of the same, in accordance with Article 65.
- Fifth.- It is not appropriate to consider GLOVO responsible, for negligence or fault, for the incorrect or insufficient response to the data subject who claims.
- Sixth.- It requests that the aggravating factors alleged by the AEPD not be applied and that the fact that the AEPD has been aware of several claims regarding the exercise of rights, without ever finding any reprehensible conduct in GLOVO's actions, be considered as a mitigating factor.

From the actions carried out in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On August 19, 2021, at 12:31 hours, the claimant sent an email to the address support@glovo.mail.kustomerapp.com, with the following content (in Polish the original, unofficial translation): "Good morning, please send me the conversation with (...), B.B.B., to my email address, as it will be the basis of my court case; if this does not happen, I will send you a court order."

On August 19, 2021, at 14:31 hours, the claimant received an email from the address support@glovo.mail.kustomerapp.com in Polish with the following content (unofficial translation): "Thank you for contacting us. We have received your communication and are sending this message automatically to confirm it. Our customer service will contact you shortly. Regards!"

SECOND: On August 19, 2021, at 15:30 hours, the claimant received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): "Good morning, thank you for contacting Glovo. Unfortunately, we cannot share the conversation or its fragments with you. Please inform us what your problem is with our ***POSITION. Best regards, Glovo Customer Service."

THIRD: On August 19, 2021, at 20:54 hours, the claimant sent an email to the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): "So, in that case, your consultant said that I was blocked in red for doing nothing for 2 hours, and then blocked me for the whole day?"

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
11/66

FOURTH: On August 20, 2021, at 08:29 hours, the claiming party received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): "Good morning, thank you for contacting Glovo. We inform you that 15 minutes before the start of the block, you receive a check-in reminder. After that, you must confirm your willingness to work during the hours that have been reserved. You did not confirm that you were ready to work, so the system automatically marked your blocks in red. If you need further support, we invite you to contact us. We will be happy to assist you. Glovo Customer Service."

FIFTH: On August 23, 2021, at 14:16 hours, the claiming party received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content: "Good morning, thank you for contacting Glovo. One hour was blocked because your contract was reassigned, the rest because you did not check in on the application. We inform you that 15 minutes before the start of the block, you receive a check-in reminder. After that, you must confirm your willingness to work during the hours that have been reserved. You did not confirm that you were ready to work, so the system automatically marked your blocks in red. If you need further support, we invite you to contact us. We will be happy to assist you. Glovo Customer Service."

SIXTH: On August 26, 2021, at 09:56 hours, the claiming party received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation):

"Thank you for contacting us. We have received your communication and are sending this message automatically to confirm it. Our customer service will contact you shortly. Regards!"

This email responds to a previous one sent by the claiming party on August 26, 2021, at 07:56 hours, with the following content (in Polish the original, unofficial translation): "Based on Article 15 of the GDPR, I would like to request the following data:

- conversation log with (...) B.B.B. from August 17 with time per minute for each sentence of this conversation
- the exact time I checked in on August 17 in the application along with the actions taken by your employees that changed this data
- information about the canceled order from ***ADDRESS.1 to Biedronka on August 17, along with the reason for this cancellation and the actions taken by your employees that changed this data
- work plan for August 17 with minute-by-minute information on changes made by the system and your employees."

SEVENTH: On August 26, 2021, at 20:09 hours, the claiming party received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation):

"Hello, A.A.A.! Thank you for contacting us. Your case has been transferred to another department.

Once we have a response, we will convey it to you. We hope this information is useful, as we are always trying to ensure the highest quality in C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

12/66

our service. You can count on us. Thank you for your trust. Customer service from Glovo."

EIGHTH: On September 3, 2021, at 12:36 hours, the claimant received an email from support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation):

"Good morning, Unfortunately, we cannot share that information with you. Can you specify exactly what you are requesting? We remind you that opening multiple chats may slow down your service time. We ask that you use a single chat for this request. Regards, Glovo Customer Service Team."

NINTH: On September 3, 2021, at 13:10 hours, the claimant sent an email to support@glovo.mail.kustomerapp.com in response to the previous email in Polish, with the following content (unofficial translation): "I was requesting the information from August 19 (however, I made a mistake writing August 17). Based on Article 15 of the GDPR, I would like to request the following information:

- conversation log with (...) B.B.B. from August 17 with time per minute for each sentence of this conversation
- the exact time I checked in on August 17 in the app along with the actions taken by your employees that changed this data
- information about the canceled order from ***ADDRESS.1 to Biedronka on August 17, along with the reason for this cancellation and the actions taken by your employees that changed this data
- work schedule for August 17 with minute-by-minute information on changes made by the system and your employees."

And the official response from your company is that you cannot provide that information, right?

TENTH: On September 6, 2021, at 17:22 hours, the claimant received an email from support@glovo.mail.kustomerapp.com, in response to the previous email from the claimant, in Polish, with the following content (unofficial translation): "Good morning, As we mentioned earlier, we cannot

share that information. Best regards, Glovo Customer Service Team.”

ELEVENTH: On November 14, 2022, at 19:31 hours, an email was sent from the address gdpr@glovoapp.com to ***EMAIL.1, with the following content:

“Dear A.A.A.:

we confirm that we have received your request to exercise your right of access regarding personal data, in accordance with applicable data protection laws (EU Regulation 2016/679).

We are pleased to inform you that after analyzing the requested information and verifying your identity according to the information requested by the Spanish Data Protection Authority (the so-called Data Protection Authority), through the Polish Data Protection Authority, we provide the following information along with the attached documents:

1. Report of the interview with (...) B.B.B. from 19.8.2021

A chat is attached (document 1).

2. Exact time of login to the app on 19.8.2021 with a list of actions taken by Glovo employees

Attached to the information request (document 2).

3. Information about the cancellation of the order from Spring Square to Biedronka on 19.8.2021

Please note that for operational reasons we had to proactively assign an order to another courier so that the user received the order on time. We inform you that after a long time without any activity on your part, we had to assign the order to another courier to receive the product on time (see Document 3).

4. Service schedule for 19.8.2021

The actions taken in the system that indicate your schedule and the actions taken by Glovo on that date are attached (document 4).

We hope this information is useful.

Please note that you can read our privacy policy at <https://glovoapp.com/es/legal/privacy-couriers/>

Considering that Glovo participates in the protection of personal data, we remind you that you can exercise your rights of access, rectification, deletion, limitation of processing, data portability, and opposition at any time, using the form available on the Platform or by sending an email to gdpr@glovoapp.com. Alternatively, in any case, you can contact the competent data protection authority.

Glovo Team”

This email was accessed by the recipient on November 14, 2022, at 19:44 hours.

TWELFTH: In the “Privacy Policy for Couriers” in effect in September 2021, it was indicated that the address to contact GLOVO regarding issues was to send an email to gdpr@glovoapp.com.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/66

THIRTEENTH: As stated in the proceeding dated March 30, 2023, in the year 2021, GLOVO was a company of type “(...)” with a total annual global turnover of ***AMOUNT.1 €, and had ***AMOUNT.2 employees.

LEGAL GROUNDS

I

Jurisdiction

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not

contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as GLOVO collects and retains, among others, the following personal data of natural persons: name and surname and email address, among other processing activities.

GLOVO carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, this is a cross-border processing, as GLOVO is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), regarding the jurisdiction of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or the processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the examined case, as stated, GLOVO has its main establishment in Spain, so the Spanish Agency for the Protection of Data is competent to act as the lead supervisory authority.

On its part, Article 15 of the GDPR regulates the right of access of the data subject to their personal data.

III

Claims Made

In relation to the claims made regarding the initiation agreement of the present sanctioning procedure, responses are provided in the order presented by GLOVO:

FIRST.- ON GLOVO'S INTERNAL PROCESSES

GLOVO claims that it has its own internal procedures to ensure compliance with personal data protection regulations in general and, in particular, regarding the attention to the data protection rights exercised by the data subjects, whether they are users, partners, or couriers.

They indicate that they are aware that the data subjects interacting with GLOVO can directly engage with their support or customer service channels for matters related to their privacy and, especially, to exercise their data protection rights, even though this is not the official channel for such purposes as stated in their privacy policy.

However, due to the special sensitivity of these cases and, especially, those cases that may have an impact on other individuals - such as the present case where the complainant requested a transcript of a conversation with B.B.B. from the Customer Support team - it was expressly established that in such cases all requests must be communicated to GLOVO's Data Protection Department.

Attached as evidence of this, as DOCUMENT 1, is a copy of the protocol of action that the agents responsible for providing Customer Support services, managed by the Live Ops Department, were required to follow in case of receiving requests for GDPR rights such as the present case.

In the aforementioned document provided, it is indicated that it is the “Version 1 - Valid from February 2021” and in its section 5.1, it expressly states the following:

“5.1. Right of access by the data subject

User or Courier contact LiveOps and request his/her data.

If he/she is not in Glovo systems you should inform him/her that we are unable to attend his request.

If he/she is in Glovo systems, LiveOps should redirect User or Courier to gdpr@glovoapp.com in order to assist this request, since the Legal Privacy Team

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/66

needs to reach out to Tech to obtain an Excel with personal details and order details as well as reach

out to the specific Team in charge of chat conversations or call recordings where applicable.”

(unauthorized translation: “5.1. Right of access by the data subject

The user or Courier contacts LiveOps and requests their data.

If he or she is not in Glovo's systems, they must inform him or her that we cannot fulfill their request.

If he or she is in Glovo's systems, LiveOps must redirect the User or Courier to gdpr@glovoapp.com to address their request, since the Legal Privacy Team needs to contact Tech to obtain an Excel with personal details and order details as well as contact the specific Team in charge of chat conversations or call recordings where applicable.”)

Additionally, in section 6, it also states the following:

“6. Relevant issues to take into account

In case of any doubt please, reach out to the Legal Privacy Team through gdpr@glovoapp.com.

In case if support of other Glovo teams is needed (such as Tech, Risk Ops, etc) please, reach out to the Legal Privacy Team through gdpr@glovoapp.com.

In accordance with Article 12 of the GDPR Glovo as data controller will provide User or Courier with the requested information within one month of receipt of the request.

The unique official channels to exercise data subjects' rights are gdpr@glovoapp.com and the form available here.”

(unauthorized translation: “6. Relevant issues to take into account

In case of doubt, please contact the Legal Privacy Team through gdpr@glovoapp.com.

In case support from other Glovo teams (such as Tech, Risk Ops, etc) is required, please contact the Legal Privacy Team through gdpr@glovoapp.com.

According to Article 12 of the GDPR, Glovo as the data controller will provide the User or Courier with the requested information within one month of receipt of the request.

The only official channels to exercise the rights of data subjects are gdpr@glovoapp.com and the form available here.”)

Glovo explains that this protocol, on one hand, indicates what the rights of access, rectification, opposition, erasure, restriction, and portability consist of. On the other hand, it explains step by step how agents should address these rights. It clarifies that, in case of doubts, all agents responsible for providing Customer Support services are duly informed of the need to forward any exercise of data protection rights to the direct communication channel gdpr@glovoapp.com, as stated in their privacy policy.

Glovo adds that all its employees, when joining the organization, sign a document called “PERSONAL DATA PROCESSING, COMMUNICATIONS AND USE OF EQUIPMENT POLICY” (attached as DOCUMENT 2 a copy of said document), which in its section 8 includes a specific chapter titled “Guidelines for responding to a petition of access, cancellation, limitation, suppression, opposition or portability rights” that describes how to react to an exercise of data protection rights.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/66

GLOVO claims that the Data Protection Department, in addition to managing the account gdpr@glovoapp.com, also has access to the account legal@glovoapp.com so that it can address the data protection rights that the agents responsible for providing Customer Support may redirect to this email. GLOVO indicates that this document was accepted and signed by the three agents who had conversations with the claimant. As an example, DOCUMENT 3 includes the conditions signed by one of them. However, GLOVO adds that these agents no longer provide their services within the organization. In this regard, DOCUMENT 4 is attached, which contains the statement signed by the legal representative of Restaurant Partner Polska sp. z o.o. (hereinafter, "Glovo Poland"), a subsidiary of Glovo operating in the Polish market, with which the agents involved in the claimant's case ceased to provide their services for Glovo Poland. GLOVO emphasizes that all agents providing Customer Support services to their users have been trained in the management of data protection rights and must act in accordance with the action protocol provided as DOCUMENT 1. It also explains that in

April 2021, the Data Protection Department of GLOVO conducted specific training for the Live Ops Department, the team responsible for managing Customer Support agents, where it explained the General Data Protection Regulation, its principles, why compliance with privacy regulations is so important, and, in particular, the management of the data protection rights of our users (including delivery personnel) by the agents. DOCUMENT 5 is attached, which contains the training conducted. In light of this, GLOVO concludes that it can only conclude that it has abundant internal procedures and a culture of privacy within its company formed by various protocols, training, and guidelines aimed at the protection of personal data. Therefore, in its opinion, it is more than evident that it acted diligently and proactively to ensure compliance with data protection throughout the company through continuous mandatory training for all its employees. In this regard, this Agency wishes to point out that, regardless of the measures adopted by GLOVO, in this case, the claimant made numerous communications requesting their right of access to data about themselves, even referencing Article 15 of the GDPR, a request that was not duly addressed. GLOVO itself acknowledges that interested parties can interact through channels other than the official channel indicated in its privacy policy and even indicated that cases like the one giving rise to this procedure should be communicated to its Data Protection Department, which has not occurred. Therefore, this allegation is dismissed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/66

SECOND.- ON THE METHOD OF REQUESTING THE RIGHT OF ACCESS

GLOVO alleges that the request for the right of access was not made through the official channels for this purpose, as it did not use the email address that GLOVO had available to interested parties at the time the exercise of the right was requested (gdp@glovoapp.com).

It also indicates that all GLOVO couriers - and, consequently, the claiming party - must expressly accept the applicable terms and conditions for couriers and the privacy policy at the time of creating an account on its platform. Attached as DOCUMENT 6 are screenshots evidencing this point (the document is written in Polish).

GLOVO adds that all couriers have access, via the website or mobile application, to a section where they can review the legal and privacy conditions. In the case of couriers, the customer service channels are exclusively intended for: accidents or offenses, issues related to deliveries, earnings, or incidents with the application.

GLOVO also explains that within the app or website, couriers can access their user profile, where both the terms and conditions of the APP and the applicable privacy policy are permanently accessible, which includes all the information on how to exercise their rights.

Therefore, GLOVO argues that, while it does not wish to justify the behavior of the agents who attended to the claiming party, which was not in accordance with GLOVO's internal policies, it cannot be ignored that the claiming party did not use the expected channels for exercising their rights.

This is relevant because, considering that this was a person with minimal sensitivity towards data protection, sufficient to directly cite Article 15 of the GDPR to request access to their personal data, they did not seem interested at any moment in seeking the official channels to request the information when it was not obtained from customer care. At no time did the interested party contact GLOVO's Data Protection Department.

In this regard, GLOVO understands that companies must address rights through any channel used by the interested party, but this obligation must be moderated, on the one hand, because not every email from a company should be deemed capable of receiving such requests subject to a response deadline, nor can interested parties ignore official channels for exercising rights to file complaints or make requests through any channel, clearly knowing where they should direct their requests.

In short, it argues that companies cannot be required to exercise diligence that could reach absurd levels. If any type of exercise of rights could be accepted in any manner, it could lead to the absurdity that a user could require the same courier delivering their order to delete their data from the application. All organizations have different employees or collaborators for...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/66

different functions and it is in no way acceptable that any employee or collaborator who has the authority or capacity to manage the rights of interested parties be required to do so; this would imply indiscriminate access to user data that would severely violate all regulations regarding the protection of personal rights.

In this case, GLOVO understands that the same diligence requested to address any request through any channel should also be required of an interested party who sufficiently understands the GDPR to cite specific articles (as can be inferred from the communications maintained), and therefore it should be weighed to what extent it was also the obligation of the interested party to inform themselves about the channels that GLOVO expressly makes available to them for the exercise of their rights and to make use of them.

In this regard, this Agency wishes to point out that in this case the claimant made their request for access to their personal data through the channel that GLOVO provides specifically to address inquiries from delivery personnel. It is not the case that the claimant made their request to "any employee or collaborator," but rather that they directed it to the channel specifically intended for delivery personnel to direct their inquiries and requests.

In fact, GLOVO itself already anticipated that such requests could be directed through this channel, which is why its own protocol indicated that they should be redirected to the corresponding department to be properly addressed.

Even GLOVO acknowledges that the agents who interacted with the claimant did not act in accordance with GLOVO's own protocol.

In any case, GLOVO cannot claim that a greater diligence and knowledge of personal data protection on the part of the person requesting the exercise of rights becomes a higher level of requirement for them compared to other users.

For the reasons stated, this allegation is dismissed.

THIRD.- ON THE AWARENESS OF THE EXERCISE OF THE RIGHT AND THE IMMEDIATE ACTION OF GLOVO. THE SPECIFIC NON-COMPLIANCE WITH INTERNAL PROCEDURES BY SPECIFIC EMPLOYEES AND THE DISPROPORTIONALITY OF THE PROPOSED SANCTION

3.1. The awareness of the exercise of the right by the claimant and the immediate reaction of GLOVO
GLOVO alleges that the Data Protection Department responsible for all aspects related to the privacy of interested parties was not aware at any time of the right of access exercised by the claimant until the AEPD itself informed the company on October 11, 2022. And that at that very moment, after carefully reviewing the case, they proceeded to immediately respond to the claimant's request by providing them with...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
20/66

access to all relevant information, including the transcript of the mentioned conversation.

After the information was sent to the interested party, there have been no further complaints or claims from the claiming party, nor has there been any knowledge of any judicial or extrajudicial proceedings initiated by them, despite their explicit indication that this was the reason for requesting the information.

In light of this, it is understood that it should be taken into account that, despite having protocols and internal procedures duly implemented in the organization, in this specific case of the claiming party, the agents responsible for providing Customer Support services did not comply with the established process.

In this regard, this Agency has nothing more to add to what has already been stated: that the claiming

party was not provided with due access until this Agency intervened and that the access request was not properly redirected to the indicated department for that purpose. The fact that the claiming party submitted (or did not submit) another complaint or claim or had initiated a judicial or extrajudicial procedure is, for the purposes of this sanctioning procedure, irrelevant.

Recital (59) of the GDPR states that: “Arrangements should be made to facilitate the exercise of the rights of the data subject under this Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and its rectification or erasure, as well as the exercise of the right to object. The data controller must also provide means for requests to be made electronically, particularly where personal data are processed by electronic means. The data controller shall be obliged to respond to the requests of the data subject without undue delay and at the latest within one month, and to explain its reasons in case it does not intend to comply with them.”

In this sense, it should not be understood that only those requests for the exercise of rights that are made solely through the channels established by the data controllers in their privacy policies will be attended to. On the contrary, each data controller has the authority to organize itself as it sees fit, as long as a satisfactory response is provided to the exercise of the rights requested by the data subjects, within the legally established timeframe. However, the organization that this data controller may have foreseen cannot be an obstacle to the satisfaction of a right that the GDPR recognizes to the data subjects.

In the present case, GLOVO had decided to centralize all requests for the exercise of rights at the address gdpr@glovoapp.com. However, the fact that a specific request is directed through a different channel does not imply that it should not be duly responded to, as the data controller in question. In this case, it cannot be denied that by communicating through the channel provided for addressing incidents of the delivery personnel, the claiming party could reasonably expect their request to be attended to. Moreover, it seems reasonable in the eyes of this Agency that the claiming party communicated with GLOVO through this channel.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
21/66

channel, which is specifically intended for requests from couriers. On the contrary, this Agency considers that, in any case, it was GLOVO's obligation to properly address the request of the complainant, whether the customer service (to the courier) forwarded said request through the relevant channels to the department dedicated to this type of requests, or as it deemed appropriate.

In this regard, in section 53 of the aforementioned Guidelines 01/2022 on the rights of data subjects - Right of access, the EDPB “...encourages data controllers to provide the most appropriate and user-friendly communication channels, in accordance with Article 12, paragraph 2, and Article 25, to allow the data subject to make an effective request. However, if the data subject makes a request through a communication channel provided by the data controller that is different from the one indicated as preferable, the request will generally be considered effective, and the data controller must process such request accordingly (see examples below). Data controllers must make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated (for example, if the data subject sends the request data to an employee who is on leave, an automatic message informing the data subject about an alternative communication channel for their request could be a reasonable effort).”

Therefore, this Agency insists that the channel used in this case by the complainant, a channel that GLOVO itself provides to couriers as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by couriers. And that it was GLOVO's obligation to properly address such request, forwarding the request to the Department that the company determined as the most suitable to provide an adequate response, if applicable, or as the company deemed appropriate. In fact, GLOVO itself acknowledges in its allegations that it already anticipated that such requests could be directed through this channel, which is why its own protocol

indicated that they should be redirected to the corresponding department to be properly addressed. And indeed, GLOVO itself recognizes that the agents who interacted with the complainant did not act in accordance with GLOVO's own protocol.

Section 56 of the aforementioned Guidelines cites as an example a case in which “a data controller X provides, on its website and in its privacy policy, two email addresses – the general email of the data controller: contacto@X.com and the email of the data protection contact point of the data controller: solicitudes@X.com. Additionally, data controller X indicates on its website that to send any inquiry or request regarding the processing of personal data, one must contact the data protection contact point at the indicated email address. However, the data subject sends a request to the general email of the data controller: contacto@X.com. In this case, the data controller must make all reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact point and be...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/66

responded within the timeframe established by the GDPR. Furthermore, the data controller cannot extend the deadline to respond to the request solely because the data subject has sent a request to the general email address of the data controller and not to the data protection contact point.”

In this regard, this Agency understands that precisely the first example in section 56 of the aforementioned Guidelines is the situation that occurred in this case. The data subject (the complainant) sent their access request through a generic channel provided by the company they are addressing. Therefore, the data controller (GLOVO) should have made all “reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact point and be responded to within the timeframe established by the GDPR,” as indicated in the aforementioned Guidelines, so that such request could be redirected to the corresponding data protection contact point in order to be addressed within the timeframe established by the GDPR. Therefore, this Agency considers that the complainant could “reasonably expect” that their request would be attended to.

For all the above reasons, this allegation is dismissed.

3.2. Non-existence of negligence by Glovo, non-compliance by agents, and disproportionality of the sanction

GLOVO claims that it is a company concerned about the privacy of the data subjects who interact with it, and for this purpose, it has implemented legal texts and privacy policies that provide detailed information about the data processing carried out, as well as the channels for addressing issues related to privacy and the exercise of rights.

It also indicates that it has internal procedures aimed at ensuring that a specialized team, responsible for ensuring compliance with the regulations, properly manages all doubts, complaints, claims, and exercises of rights of the data subjects.

In this sense, it explains that this centralization has been prioritized over potential mismanagement by a non-specialized department such as customer support, whose function is to resolve incidents in the provision of the service.

It argues that in the specific case of the complainant's right of access, it cannot be said that there was any intent or negligence in GLOVO's actions. The company has designed a specific and specialized mechanism for handling these cases, provides training to all its employees on data protection in general, and on rights management in particular. Therefore, it understands that it cannot be denied that GLOVO employees are aware of the existence of a specific procedure. And that the non-compliance with the company's internal procedures by specific employees, who misinterpret how to address the complaint, cannot be attributed in this case, under any premise, to negligence or intent on the part of GLOVO in this regard.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid
sedeagpd.gob.es
23/66

GLOVO claims that, excluding the requests for the exercise of rights managed directly by the Customer Support Department, the Data Protection Department has managed 2,182 requests for the exercise of rights from data subjects in 2021, 6,396 in 2022, and 1,970 so far in 2023. Therefore, it insists that the procedures implemented by GLOVO are known, functional, and effective. It explains that the present case depends exclusively on the non-compliance with these procedures by specific employees, a non-compliance that we understand cannot be attributed in any way to GLOVO, which has made, in its opinion, all necessary and reasonable efforts to ensure the proper handling of rights, even when the data subject does not use the specific channels available for this purpose. Furthermore, GLOVO highlights that the management of the case with the claimant was not amicable in any case, having disrespected the first interlocutor with whom they dealt, which may have affected how the subsequent agents responsible for providing Customer Support communicated and managed their requests (which is not approved by GLOVO in any case). In light of the above, GLOVO finds it unfair and disproportionate that, being diligent, responsible, and sensitive in matters of data protection, it is sought to sanction it with such a high amount (€15,000) merely for not addressing, in the eyes of this Agency, a right of access incorrectly, in which the failure was on the part of some agents from the Customer Support Department, who are no longer in the organization because the relevant measures were taken upon becoming aware of these facts. In this regard, this Agency wishes to point out that it is not enough for the data controller (in this case, GLOVO) to have protocols in place to eliminate intentionality or negligence in its actions. Rather, it is the obligation of the data controller to ensure that such protocols are known and followed by all its employees.

Moreover, the negligent actions of an employee do not exempt GLOVO from responsibility. The company's liability in the sanctioning sphere for the negligent actions of an employee that result in non-compliance with data protection regulations has been confirmed by the jurisprudence of the Supreme Court. In this respect, it should be noted that the Judgment of the Supreme Court No. 188/2022 (Contentious-Administrative Chamber, Section 3), dated February 15, 2022 (rec. 7359/2020), states in its Fourth Legal Ground: "The fact that it was the negligent action of an employee does not exempt her from responsibility as the person in charge of the correct use of the security measures that should have guaranteed the proper use of the designed data registration system. As we already stated in STS No. 196/2020, dated February 15, 2021 (rec. 1***AMOUNT.2/2020), the data controller is also liable for the actions of its employees and cannot excuse itself based on its diligent actions, separately from the actions of its employees, but rather it is the 'culpable' actions of these employees, resulting from the violation of existing security measures, that underpin the company's liability in the sanctioning sphere for the 'own' acts of its employees or officers, not of third parties."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
24/66

The ruling continues to argue about the responsibility of legal entities in our legal system: "...It simply happens that, since the direct liability of legal entities is admitted in our Administrative Law, which therefore recognizes their capacity to infringe, the subjective element of the infringement is manifested in these cases differently than it is for natural persons, so that, as noted by the constitutional doctrine we have previously mentioned -SsTC STC 246/1991, of December 19 (F.J. 2) and 129/2003, of June 30 (F.J. 8)- the direct blameworthiness derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective and the risk that, consequently, the legal entity subject to compliance with that norm must assume." (the underlining is from this Agency). Therefore, in the present case, the fact that the employees acted (or did not act) outside the established protocol of GLOVO does not exempt it from its responsibility for its actions. In any case, at no time has this Agency attributed liability to GLOVO for the infringement of Article 15

of the GDPR on the grounds of intent, but rather it has been considered that its actions regarding the present claim have been severely negligent.

Thus, this allegation is dismissed.

FOURTH.- OTHER RELEVANT PROCEDURES

GLOVO considers it appropriate to mention various resolutions of the AEPD related to its activity in the exercise of rights:

- 1) EXP202305625: File of actions regarding an exercise of data deletion.
- 2) EXP202301329: File of actions regarding an exercise of data deletion.
- 3) E/00917/2021: File of actions regarding a deletion/modification of data.

GLOVO alleges that, in all three cases, the effective exercise of the right was out of time, due to various reasons that initially prevented its management.

Although these are cases with different origins and purposes, they are attributable to errors that did not depend on the policies and procedures implemented by GLOVO, as in the present case, and yet in all cases the AEPD opted for the filing of actions and not for initiating a sanctioning procedure.

GLOVO adds that the effective resolution of this case is the same as in the previous ones, given that, at the moment GLOVO became aware of the case, it immediately proceeded to address the right exercised by the claimant, therefore it understands that the resolution of the case by the AEPD should have been the same as in the previous situations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/66

In this regard, this Agency wishes to emphasize that GLOVO itself recognizes that these are cases with a different origin and purpose from the case that gives rise to the present sanctioning procedure. Furthermore, the cases cited by GLOVO had been admitted for processing after more than three months had passed since their receipt (with a difference of days), pursuant to Article 65 of the current LOPDGDD, but their filing was due to the fact that in response to the aforementioned transfer, under the discretionary powers that this Agency held, it was deemed appropriate not to initiate any sanctioning procedure. However, this does not prevent this Agency from initiating the necessary preliminary investigative actions or a sanctioning procedure, in order to determine the possible existence of an infringement of the GDPR within its competencies.

In any case, regardless of any possible decisions that may have been made previously regarding a complaint filed with this Agency, in the present case it concerns a complaint filed by a citizen of a Member State of the European Union, regarding a cross-border processing carried out by a data controller located in another Member State, which affects citizens from more than one Member State of the European Union. Therefore, Article 60 of the GDPR obliges the aforementioned Member States to reach a consensus regarding the possible decision to be made concerning such a complaint. In the present case, the procedure established in the GDPR has been followed, and an agreement has been reached with all the involved authorities to initiate a sanctioning procedure against GLOVO, with the scope set forth in this document.

Thus, this allegation is dismissed.

FIFTH.- ON THE EVOLUTION OF GLOVO

GLOVO alleges that the facts on which the AEPD bases its proposed sanction date back to August and September 2021.

And that since the first interactions with this Agency began, GLOVO has evolved significantly, increasing the members of its Data Protection Department, improving and adapting the protocols, measures (both legal, technical, and organizational), guidelines, and procedures that were already implemented in its organization, as well as creating new ones.

All of this with the aim of continuing to ensure the protection of the personal data of the delivery personnel, in addition to other categories of interested parties whose data it processes.

GLOVO adds as evidence of this that its Data Protection Officer has been pre-selected in the category

“Best Privacy Culture Improvement Award” of the prestigious PICCASO Privacy Awards Europe. And that recently GLOVO has become a collaborating company of the prestigious Spanish Professional Association of Privacy, which shows a firm and clear commitment from GLOVO to the privacy of its users and, ultimately, of its delivery personnel.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/66

In this regard, this Agency wishes to point out that the possible awards and recognitions that GLOVO or its Data Protection Officer may or may not have are not the subject of this procedure, but rather it is a matter of determining in the specific case whether GLOVO's actions may have infringed the provisions of Article 15 of the GDPR. Therefore, this allegation is dismissed.

Regarding the allegations made against the proposed resolution of this sanctioning procedure, responses are provided in the order presented by GLOVO:

FIRST.- ON THE EVENTS OCCURRED IN THE MANAGEMENT OF THE REQUEST

GLOVO claims that it has numerous technical and organizational measures aimed at ensuring compliance with the applicable data protection regulations and, in particular, the attention to the rights of the data subjects. It is surprised that the AEPD limits itself, in its opinion, to concluding that the request was not duly attended to "regardless of the measures adopted" by GLOVO, rendering all these measures ineffective as if they did not exist.

GLOVO indicates that these measures not only exist but are effective in the vast majority of cases, recalling that it has managed 2,182 requests for the exercise of data subjects' rights in 2021, 6,396 in 2022, 3,059 in 2023, and 329 so far in 2024. To this end, it highlights that it has managed more than 17 requests per day, on average, solely through the rights assistance channel via the GDPR mailbox. GLOVO explains that it has never intended to deny that the present case was not attended to in a timely manner by the Data Protection Department, but it does consider that the sanctioning action of the AEPD is excessive, given the arguments made in the information request.

In this regard, this Agency wishes to point out that it has in no way denied or "rendered ineffective" the measures that GLOVO may have adopted regarding data protection, in relation to the issue subject to the complaint. In fact, lacking these measures would not only constitute a violation of Article 15 of the GDPR but would also likely indicate the existence of other violations.

The present procedure does not aim to conduct an audit of the rights procedures that GLOVO has attended to.

It simply seeks to ascertain that in this case, the exercise of the right of access of the complainant to their personal data was not duly attended to, as requested, which has also not been denied by GLOVO itself.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/66

Finally, this Agency wishes to emphasize that it is not the case that the request was not attended to "in time," but rather that such a request would not have been attended to had this Agency not intervened, since access to their data was only provided to the complainant after information was requested regarding the complaint.

GLOVO claims that this complaint arises from a right of access exercised in the customer support chat provided to users of the platform intended to resolve incidents related to its use, not in the channel designated for the attention of data protection rights.

It points out that the GLOVO Customer Service Department has managed nearly 3 million cases between 2023 and the current year, which amounts to more than 8,000 daily requests, among which are requests for the exercise of rights under the GDPR that should have been communicated to the

data protection team.

This obligation to refer any requests for the exercise of data protection rights to the Data Protection Department is communicated to all GLOVO employees and, especially to the Live Ops Department responsible for the user support and assistance channels, among others, as has been evidenced. However, given the multitude of cases being managed, specific circumstances arose in this particular case that hindered proper management, such as, for example:

- A prior conversation with an agent in which the interested party displayed at least reprehensible behavior in which no rights were exercised during this conversation.
- A request for rights that required the provision of the conversation held with the agent, a conversation that the Customer Service Department is not authorized to provide, while the Data Protection Department is authorized to do so.
- Other information related to GLOVO's operations and especially a discussion regarding the execution of the services provided by the complainant, which diverted the attention from the requests made and was correctly attended to by the responsible agents.

Therefore, GLOVO indicates that it was not merely a request for access, but rather the coexistence of several requests at the same time, which caused the customer support service (i) to inform that it could not provide access to the information (thus, it did respond to the request of the interested party) and (ii) to focus on attending to the other requests that it could address, since the objective of this department is to manage incidents and complaints from users of the platform, which also includes incidents and complaints that couriers may have regarding the execution of their services, and to assist them as much as possible.

In this regard, this Agency wishes to insist that the fact that the request was made through GLOVO's Customer Service Department does not exempt the obligation to provide a proper response to such a request.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
28/66

This Agency also wishes to point out that the present procedure does not concern the possible prior conversation that the complainant may have had with a GLOVO agent, nor the conduct (reprehensible or not) of the complainant, since in that conversation no request for access to personal data was made.

Neither is the present procedure concerned with the possible request of the complainant for "other information related to the operation of GLOVO and especially a discussion about the execution of the services provided." Simply put, this procedure aims to ascertain that in this case, the exercise of the complainant's right of access to their personal data has not been properly addressed, as requested, which has also not been rejected by GLOVO itself.

The fact that the Customer Service Department was not authorized to provide the conversation of the complainant with the GLOVO agent, but rather the Data Protection Department, is solely and exclusively due to GLOVO's ability to organize itself as it wishes and cannot be an obstacle to the proper handling of requests for access to the personal data of the interested parties.

Regarding GLOVO having managed numerous requests, many of which are requests for the exercise of rights under the GDPR, this Agency wishes to point out that the object of the present sanctioning procedure is the specific case noted in the complaint that gave rise to it, and that this has been taken into account when determining the sanction.

As for the coexistence of several requests at the same time, this Agency wishes to clarify that (i) this Agency does not consider that a response was not given to the complainant, but rather that the exercise of the right was not properly addressed (i.e., the information about their personal data was not provided), when it was due to GLOVO. Regarding GLOVO (ii) focusing on the other requests, this Agency reiterates that this is not the subject of the present procedure.

With respect to the fact that GLOVO's customer support service informed the complainant that it could not provide the requested conversation but properly addressed the rest of the requests made, this

Agency wishes to remind that, as stated in the proven facts of this resolution, on August 26, 2021, at 20:09 hours, the complainant received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): "Hello, A.A.A.! Thank you for contacting us. Your case has been transferred to another department. Once we have a response, we will communicate it to you. We hope this information is useful, as we are always trying to provide the highest quality in our service. You can count on us. Thank you for your trust. GLOVO Customer Service."

And that on September 3, 2021, at 12:36 hours, the complainant received an email from support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation): "Good morning, Unfortunately, we cannot..."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
29/66

we can share that information with you. Can you specify what exactly you are requesting? We remind you that opening multiple chats may slow down your service time. We ask that you use a single chat for this request. Regards, Glovo Customer Service Team."

That is to say, the Customer Service Department of GLOVO did forward the request of the claimant to another department, although this Agency does not know to whom it was forwarded. However, in responding to the claimant, they do not indicate the reasons for such denial, but simply limit themselves to stating that "we cannot share that information with you," without further information in this regard.

In any case, even assuming that multiple requests of different natures were made at the same time, this Agency considers that this does not exempt the obligation to provide a proper response to the claimant's access request.

Finally, GLOVO points out that, as will be developed later when commenting on the aggravating circumstances referred to by the AEPD, the interested party did not insist at least three times that they wanted the requested information provided in the sense that they had to make three distinct requests, but rather that it was always made within the same ticket, and having always received the same response: the Customer Service Department cannot provide that information.

In any case, GLOVO understands that there are two requests, the first on August 26 at 7:56, indicating that they requested the conversation from August 17, along with other information related to the execution of their services, and a second request on September 3 at 12:36, copying exactly the same previous request, but correcting the date of the requested conversation (initially indicating it was from August 17, and later correcting it to indicate it is from August 19). Therefore, it is their understanding that it is always the same request, within the one-month period to respond, and that it was only repeated to correct the date of the requested conversation. They emphasize that the other issues related to the execution of services by the claimant were indeed resolved.

For all the above reasons, GLOVO considers that this is a case that should be treated as a human error in management by a department that was not the one that should respond, with GLOVO having taken all appropriate measures to ensure that, in accordance with Article 12.1 and 12.2 of the GDPR, any communication is provided to the interested party in accordance with Articles 15 to 22, and to facilitate the exercise of their rights. They argue that GLOVO cannot be required to do more than provide all departments that do not have functions related to the management of data protection requests with clear instructions on how to proceed, and much less, responsibility for non-compliance by these individuals in relation to such instructions.

In this regard, this Agency wishes to point out that the fact that the communications of the claimant with the company were made through the same ticket is not indicative of anything; it is simply a way for the company to organize itself, like any other.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid

In this case, it is recorded that on August 19, 2021, at 12:31 hours, the claimant sent a communication to the Customer Service Department with the following content (in Polish the original, unofficial translation): “Good morning, please send me the conversation with (...), B.B.B., to my email address, as it will be the basis of my court case; if that does not happen, I will send you a court order.”

That is to say, the claimant made a first request for access to their personal data (in this case, the recordings of their conversation with a ***POSITION.1). GLOVO seems to overlook this first request from the claimant in its allegations, but the fact that it does not cite Article 15 of the GDPR does not prevent its content from being a request for access to the personal data of the claimant.

In light of the company's refusal to provide such information, and after a series of conversations on other matters, on August 26, 2021, at 07:56 hours, the claimant again requested the Customer Service Department of GLOVO to provide certain information from August 17, 2021, about themselves, this time based on Article 15 of the GDPR.

On August 26, 2021, the claimant was informed that their case had been transferred to another department, and on September 3, 2021, at 12:36 hours, they were informed that the requested information could not be provided.

On September 3, 2021, the claimant indicated that they had made a mistake in requesting information about themselves from August 17, 2021, and that what they wanted was information from August 19, 2021.

And again, the company informed them on September 6, 2021, that it could not provide such information.

That is to say, in three distinct communications (from August 19, August 26, and September 3), the claimant had requested access to their personal data. While it is true that all these communications were made within the month during which GLOVO was required to respond, it is equally true that such communications existed, that the claimant requested access to their personal data on three occasions, and that on all three occasions GLOVO responded that it could not provide such access, without giving further information in this regard. GLOVO itself has acknowledged this in its allegations by stating, “having always received the same response: the Customer Service Department cannot provide that information.”

Regarding the allegation that the other issues related to the execution of services by the claimant were resolved, this Agency has already insisted that this is not the subject of the present sanctioning procedure.

Finally, this Agency wishes to point out that it strongly disagrees with GLOVO's assertion that the Customer Service Department “is not the one that should respond” to a request for access to the personal data of a data subject and that it is a department that does not have “functions related to the management of data protection requests.” On the contrary, this Agency considers that the channel of the Customer Service Department is a perfectly valid means for the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

exercise of rights, therefore the request from the claiming party should have been addressed.

It is not merely a matter of providing a (negative) response, but rather that they should have been given proper access to their personal data by directing their request through such a channel. This Agency does not have the authority to determine how each company should be organized and which department should respond to requests for the exercise of rights, but it cannot be understood that a request directed to a generic address, such as that of the Customer Service Department, is not duly addressed (that is, that the exercise of the requested right is provided, and not just a response stating that the requested right cannot be facilitated).

As stated in the response to the allegations regarding the initiation agreement of the present sanctioning procedure, it cannot be understood that only those requests for the exercise of rights that

are made solely through the channels established by the data controllers in their privacy policies will be addressed. Rather, each data controller has the authority to organize itself as it deems best, as long as a satisfactory response is provided to the exercise of the rights requested by the interested parties, within the legally established timeframe. However, the organization that this data controller may have foreseen cannot be an obstacle to the satisfaction of a right that the GDPR recognizes for the interested parties.

In this case, GLOVO had decided to centralize all requests for the exercise of rights at the address gdpr@glovoapp.com. However, the fact that a specific request is directed through a different channel does not imply that it should not be duly responded to, as the data controller in question.

In this case, it cannot be denied that by communicating through the channel provided for addressing issues related to the delivery personnel, the claiming party could reasonably expect their request to be addressed. Moreover, it seems reasonable in the eyes of this Agency that the claiming party communicated with GLOVO through this channel, which is specifically provided for requests from the delivery personnel. On the contrary, this Agency considers that, in any case, it was GLOVO's obligation to duly address the request of the claiming party, whether the customer service (to the delivery personnel) forwarded that request through the relevant channels to the department dedicated to this type of requests, or as it deemed best.

Therefore, this Agency insists that the channel used in this case by the claiming party, a channel that GLOVO itself provides to the delivery personnel as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery personnel, forwarding the request to the Department that the company determined as the most suitable to provide a proper response, in its case, or as the company deemed best.

Finally, regarding the assertion that GLOVO cannot be held responsible for the alleged non-compliance by "these persons" in relation to "said instructions," this Agency wishes to emphasize what was stated in the response to the allegations.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
32/66

allegations to the initiation agreement, in the sense that the fact that the employees had (or had not) acted outside the provisions of the GLOVO protocol does not exempt it from its responsibility for its actions.

For all the above, this allegation is dismissed.

SECOND.- ON THE FAILURE TO ATTEND TO THE RIGHT OF ACCESS

GLOVO alleges that the AEPD initiated a sanctioning procedure for failing to attend to a right of access.

And that technically a response was indeed given to its request, by indicating that "Unfortunately, we cannot share that information with you." It indicates that, in fact, the support team for the delivery person cannot directly provide this information to the delivery persons because GLOVO's own regulations establish this in order to ensure that any request for rights is properly attended to in accordance with the GDPR.

Therefore, it requests that the AEPD reevaluate the case considering this information, as it is not the same for an interested party to address the Data Protection Department and receive no response at all, as it is for a delivery person to make a request to a department that is not responsible for attending to such requests, and for that department to provide a response with which they were not satisfied.

In this regard, this Agency insists that it does not consider that a response was not given to the claimant, but rather that the exercise of the right was not properly attended to (that is, the information about their personal data was not provided), when it was GLOVO's obligation to do so. This case does not concern the fact that the claimant was not satisfied with the response provided, but rather that it was GLOVO's duty to provide the requested information.

This Agency also wishes to emphasize that the fact that the Customer Service Department was not authorized to provide the conversation of the claimant with the GLOVO agent, but rather the Data

Protection Department, is solely and exclusively due to GLOVO's ability to organize itself as it wishes and cannot be an obstacle to the proper attention to requests for access to the personal data of interested parties.

Finally, this Agency insists that it strongly disagrees with GLOVO's assertion that the Customer Service Department should not respond to a request for access to the personal data of an interested party. On the contrary, this Agency considers that the channel of the Customer Service Department is a perfectly valid means for the exercise of rights, so the claimant's request should have been attended to. It is not only a matter of providing a (negative) response, but rather that the due access to their personal data should have been provided when directing their request through such a channel. This Agency does not have the authority to establish how each company should be organized and which department should respond to requests for the exercise of rights.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/66

but it cannot be understood that a request addressed to a generic address, such as that of the Customer Service Department, is not duly attended to (that is, that the exercise of the requested right is provided, and not merely that a response is given stating that the requested right cannot be provided).

As has already been stated, it cannot be understood that only those requests for the exercise of rights that are made exclusively through the channels established by the data controllers in their privacy policies will be attended to. Rather, each data controller has the authority to organize itself as it deems best, as long as a satisfactory response is provided to the exercise of the rights requested by the data subjects, within the legally established timeframe. However, the organization that this data controller has planned cannot be an obstacle to the satisfaction of a right that the GDPR recognizes for the data subjects.

In this case, GLOVO had decided to centralize all requests for the exercise of rights at the address gdpr@glovoapp.com. However, the fact that a specific request is directed through a different channel does not imply that it should not be given due response, as the data controller in question.

In this case, it cannot be denied that by communicating through the channel provided for addressing incidents of the delivery personnel, the claimant could reasonably expect their request to be attended to. Moreover, it seems reasonable to this Agency that the claimant communicated with GLOVO through this channel, which is specifically provided for requests from delivery personnel. On the contrary, this Agency considers that, in any case, it was GLOVO's obligation to duly attend to the request of the claimant, whether the customer service (to the delivery personnel) forwarded that request through the relevant channels to the department dedicated to this type of requests, or as it deemed best.

Therefore, this Agency insists that the channel used in this case by the claimant, a channel that GLOVO itself provides to the delivery personnel as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery personnel. And it was GLOVO's obligation to establish the necessary internal mechanisms so that this request for rights was, if applicable, forwarded to the channels that the company determined to be the most suitable to provide a proper response.

GLOVO claims that the delivery personnel never contacted the Data Protection Department, despite:

- (i) having signed a contract with GLOVO in which the address for exercising data protection rights appears,
- (ii) having accepted a privacy policy for the use of the app where the address for exercising data protection rights appears,
- (iii) there being a specific portal for delivery personnel where relevant information can be found, including the privacy policy, which identifies the address for exercising data protection rights, and

C/ Jorge Juan, 6

www.aepd.es

- (iv) to use an application to execute its delivery services, with a specific section where the privacy policy can be accessed, which identifies the address for the exercise of data protection rights. Therefore, GLOVO understands that it not only provided means to its delivery support service agents but also ensured that the delivery personnel had timely information at all times to know where to turn. GLOVO explains that it is aware that the regulator and data protection authorities advocate for allowing interested parties to request their rights through any channel, as mentioned by the AEPD in the Proposal for Resolution, but it is also true that this is not an absolute right; not all channels are valid per se, nor can an interested party be exempted from responsibility if, being able to explicitly mention Article 15 of the GDPR (and not making a generic request like “I want you to send me my data”), they do not even bother to find out what the address is for exercising their rights. GLOVO indicates that it is not that the interested party did not look for it initially, but that they did not even attempt to do so when the Customer Service Department informed the delivery person, in a timely manner, that they could not provide this information. It is worth recalling that the AEPD's own Guidelines 01/2022 on the rights of data subjects state that “Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated [...]”. GLOVO understands that it made reasonable efforts to ensure that the agents of the delivery support team could identify requests for the exercise of rights and either communicate them directly to the data protection department or respond to the interested party with the address to which they should turn, efforts that, due to human error, did not materialize in reality. In short, just as it is accepted that an interested party may choose not to direct their request to the corresponding department, having more than accessible means to obtain the contact information, GLOVO understands that a human error in managing the response to a request for the exercise of rights by an agent who was dedicated to trying to resolve a series of incidents of that delivery person should be considered possible. Furthermore, the interested party did not insist (as interpreted by the AEPD in its Proposal for Resolution) on this right of access once they were informed that this information could not be provided, which only served to prevent the correction of the error made by the agent of the delivery support department, who may have understood that the delivery person considered their incident resolved in general. In this regard, this Agency wishes to point out that the understanding of the incident raised by the complainant by the agent of the delivery support department is not the subject of this procedure. It is simply a matter of confirming that in this case, the exercise of the rights of the data subject has not been duly attended to.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
35/66

right of access of the claimant to their personal data, as requested, which has not been rejected by GLOVO itself.

This Agency insists that the channel used in this case by the claimant, a channel that GLOVO provides to the delivery personnel as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery personnel. It was GLOVO's obligation to properly address such a request, forwarding it to the Department that the company determined to be the most suitable to provide an appropriate response, if applicable, or as the company deemed best. It is also not the case that the right of access is an “absolute right” nor that “all channels are per se valid,” but it cannot be understood in this case that a delivery person addressing the Customer Service, a channel intended to receive requests from delivery personnel, in order to request a right of access to their personal data, is not a suitable channel for that purpose, as has already been extensively explained.

At no time do the aforementioned Guidelines 01/2022 obligate the interested parties to direct their requests for the exercise of rights solely and exclusively through the preferred channel for that purpose, nor even to seek it either at the first moment or at a later moment, nor when the company

indicates that it cannot provide such information. Despite GLOVO's attempts to disassociate itself from the response provided by its Customer Service Department to the claimant, as if it were not a response given by the company itself, this does not change the fact: it has been GLOVO, through its Customer Service Department, that has denied the information requested by the claimant. Moreover, supposedly the claimant's request had been transferred to another department, as indicated in its response to the claimant on August 26, 2021. In any case, if the reason for such denial was that this Department was not authorized to provide it, but there was another department authorized to do so, that information was also not provided to the claimant.

What the aforementioned Guidelines 01/2022 do require, as GLOVO acknowledges, is that "Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated [...]".

This Agency insists that Recital (59) of the GDPR states: "Mechanisms must be established to facilitate the exercise of the rights of the data subject under this Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and its rectification or erasure, as well as the exercise of the right to object. The data controller must also provide means for requests to be submitted electronically, particularly when personal data is processed by electronic means. The data controller must be obliged to respond to the requests of the data subject without undue delay and at the latest within one month, and to explain its reasons in case it does not intend to comply with them."

In this regard, it cannot be understood that only those requests for the exercise of rights that are made solely through the established channels will be addressed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

36/66

established by the data controllers in their privacy policies. On the contrary, each data controller has the authority to organize itself as it sees fit, as long as a satisfactory response is provided to the exercise of the rights requested by the data subjects, within the legally established timeframe.

However, the organization that this data controller has planned cannot be an obstacle to the satisfaction of a right that the GDPR recognizes for the data subjects.

In this case, GLOVO had decided to centralize all requests for the exercise of rights at the address gdpr@glovoapp.com. However, the fact that a specific request is directed through a different channel does not imply that it should not be duly responded to, as the data controller in question.

In this instance, it cannot be denied that by communicating through the channel provided for addressing issues related to the delivery personnel, the claimant could reasonably expect their request to be attended to. Moreover, it seems reasonable to this Agency that the claimant communicated with GLOVO through this channel, which is specifically designated for requests from the delivery personnel. On the contrary, this Agency considers that, in any case, it was GLOVO's obligation to duly attend to the claimant's request, whether the customer service (for the delivery personnel) forwarded said request through the relevant channels to the department dedicated to this type of requests, or as it deemed appropriate.

In this regard, in section 53 of the aforementioned Guidelines 01/2022 on the rights of data subjects - Right of access, the EDPB "...encourages data controllers to provide the most appropriate and user-friendly communication channels, in accordance with Article 12, paragraph 2, and Article 25, to allow the data subject to make an effective request. However, if the data subject makes a request through a communication channel provided by the data controller that is different from the one indicated as preferable, the request will generally be considered effective, and the data controller must process that request accordingly (see the examples below). Data controllers must make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated (for example, if the data subject sends the request data to an employee who is on leave, an automatic message informing the data subject about an alternative communication channel for their request could be a reasonable effort)."

Therefore, this Agency insists that the channel used in this case by the claimant, a channel that GLOVO itself provides to the delivery personnel as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery personnel. And that it was GLOVO's obligation to duly attend to such a request, forwarding the request to the Department that the company determined as the most suitable to provide a proper response, in its case, or as the company deemed best.

Section 56 of the aforementioned Guidelines cites as an example a case in which "a data controller X provides, on its website and in its policy of...

37/66

privacy, two email addresses – the general email of the data controller: contacto@X.com and the email of the data protection contact point of the data controller: solicitudes@X.com. Additionally, the data controller X indicates on its website that to send any inquiry or request regarding the processing of personal data, one must contact the data protection contact point at the indicated email address.

However, the data subject sends a request to the general email of the data controller:

contacto@X.com. In this case, the data controller must make all reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact point and responded to within the timeframe established by the GDPR. Moreover, the data controller cannot extend the deadline for responding to the request solely because the data subject sent a request to the general email of the data controller and not to the data protection contact point."

In this regard, this Agency understands that precisely the first example in section 56 of the aforementioned Guidelines is the situation that occurred in this case. The data subject (the complainant) submitted their access request through a generic channel provided by the company they are addressing. Therefore, the data controller (GLOVO) should have made all "reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact point and responded to within the timeframe established by the GDPR," as indicated in the aforementioned Guidelines, so that such request could be redirected to the corresponding data protection contact point in order to be addressed within the timeframe established by the GDPR. Therefore, this Agency considers that the complainant could "reasonably expect" their request to be attended to.

For all the above reasons, this allegation is dismissed.

THIRD.- ON THE OPENING OF A SANCTIONING PROCEDURE INSTEAD OF A RIGHTS PROTECTION

GLOVO is surprised that the AEPD has chosen to directly initiate a sanctioning procedure against it in this case, considering that in the response to the information request it was credibly demonstrated that it had responded to the complainant immediately once it became aware of the existence of their request, which occurred once the AEPD sent the information request.

In this regard, this Agency wishes to point out that the complainant requested access to their personal data on three occasions from GLOVO's Customer Service Department (on August 19, August 26, and September 3, 2021), a request that was denied three times by GLOVO, and which was only duly addressed after the sending of the information request with the complaint to this AEPD. It is not true that GLOVO was unaware of the existence of their request; rather, as the company itself has stated multiple times in its allegations, such requests from the complainant were rejected by the company.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

38/66

GLOVO highlights that it has not received any response from the claimant regarding the information it provided in accordance with the right of access, therefore the claimant's right of access should be understood as fully addressed.

In this regard, this Agency wishes to emphasize that the fact that the claimant has not reacted in any way since the information about their personal data was provided is not evidence of anything regarding

whether the right of access has been "fully addressed" or not. In any case, this Agency has considered that GLOVO has responded to the claimant's right of access through its email dated November 14, 2022.

GLOVO claims that if there was no response earlier, it was (i) because the interested party did not contact the appropriate department, (ii) because, having been answered by the Customer Service Department, the delivery person did not insist on their request nor sought another alternative way to request the information—which could only be done by consulting the privacy policy or any of the other sources of information indicated in the previous SECOND allegation—where the specific and clear address to which to direct the request is listed, and (iii) because when filing their complaint with the Polish Data Protection Authority on September 30, 2021, the slowness of the "Internal Market Information System" (hereinafter, IMI System) did not allow GLOVO to be aware of the complaint until October 11 of the following year, that is, 2022, even though the complaint was admitted for processing on June 24 of that same year.

In this regard, (i) this Agency wishes to insist that it is not the obligation of the interested party to direct their requests for the exercise of rights through the channel preferred by the responsible data controller. Furthermore, this Agency considers that the channel used in this case by the claimant, which GLOVO itself provides to delivery personnel as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery personnel. It was GLOVO's obligation to duly address such a request by forwarding it to the Department that the company deemed most suitable to provide an adequate response, as appropriate, or as the company deemed best.

(ii) It is also not the obligation of the interested party to insist on their request or seek an alternative way to request the information. It cannot be understood that access to personal data is not provided to the interested party simply because it was not requested through the company's preferred channel, and even less can it be understood that such information is not provided due to a lack of insistence on their request. Moreover, as already mentioned, in this case, the claimant did insist on their access request in three different communications with the company.

(iii) Regarding GLOVO's inability to address the request earlier due to the slowness of the "Internal Market Information System," this Agency insists that the claimant insisted on their request for access to their personal data on three occasions, so GLOVO had several opportunities to do so, long before the claimant filed their complaint or before such complaint was received by this Agency.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
39/66

Furthermore, GLOVO indicates that there were means intended to ensure that a specific department, whose functions do not include responding to the rights of data subjects, forwards the information to the Data Protection Department, which is solely and exclusively responsible for responding to these requests, but that a human error prevented this communication from being effective.

In this regard, this Agency reiterates that it considers the channel used in the present case by the complainant, a channel that GLOVO itself provides to the couriers as a suitable means to contact it, to be a perfectly valid means for requesting the exercise of the rights recognized in the GDPR by the couriers. And that it was GLOVO's obligation to duly attend to such a request, forwarding the request to the Department that the company determined to be the most suitable to provide an appropriate response, in its case, or as the company deemed best.

As for the Data Protection Department being the "sole and exclusive responsible for responding to these requests," this is due to GLOVO's organizational authority and in no way can it be an obstacle to duly attending to the rights of data subjects in data protection matters. The data subject (in this case, the complainant) contacted the data controller (GLOVO) and requested access to their personal data. And it was the data controller (GLOVO) that denied such access on three occasions, regardless of which Department did so.

GLOVO continues to argue that it is surprised that, having responded to the data subject first via chat

(even though the response was not to the satisfaction of the data subject or did not meet their expectations, which was not communicated to the agent in question), and subsequently officially by the Data Protection Department, the Agency decides to initiate a sanctioning procedure without even proposing the opening of a rights protection procedure.

GLOVO is also surprised that, given the precedents among the resolutions of the AEPD in which, responding late, a rights protection procedure has been closed without any sanction (when, responding out of time, the GDPR has technically already been breached and therefore there is sanctioning capacity on the part of the AEPD), this solution has not been accepted in the present case, with it being more than sufficiently accredited that it has implemented, in its opinion, the necessary means to comply with the regulations.

In this regard, GLOVO brings to attention the existence of procedures such as PS/00197/2019, where a data subject requested a right of erasure directly from the controller, without receiving a response, with the AEPD:

- 1) Opening the rights protection procedure TD/01105/2018;
- 2) The respondent indicated that they responded to the data subject by phone;
- 3) The AEPD upheld the complaint of the complainant, urging the respondent to respond within 10 days;
- 4) The AEPD had to make a second request, almost two months later, since the respondent did not prove to the AEPD that they had responded to the data subject;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
40/66

- 5) Almost a year later, the AEPD agreed to initiate a sanctioning procedure for failing to demonstrate that a response had been provided to the interested party by the respondent;
- 6) In response to this sanctioning procedure, the respondent claims that they did indeed respond to the interested party after the guardianship procedure;
- 7) In conclusion, the AEPD not only does not sanction or warn the respondent, but also agrees to terminate the procedure “due to the absence of facts that could constitute the infringement typified in Article 83.5 e) of the GDPR.”

Another case, more recent, which generates even more surprise for GLOVO, is PD/00018/2024, whereby:

- 1) An interested party requests a right of access.
- 2) The responsible party does not provide any response.
- 3) The interested party files a complaint with the AEPD, which, via Article 65.4 of Organic Law 3/2018, of December 5, on Data Protection and Guarantee of Digital Rights (hereinafter, “LOPDGDD”), provided 10 days for the respondent to submit allegations.
- 4) The respondent did not respond to either the complainant or even to the AEPD itself, but instead, for the moment, the AEPD continues to insist on granting the respondent even more time to respond to the interested party's right of access.

In short, GLOVO is unaware of why, in the case of an alleged breach of Articles 15 to 22 of the GDPR, related to the rights of the interested parties, the AEPD has not opened, as in previous cases, a guardianship procedure or a rights procedure, granting GLOVO a specified period to fulfill the obligation to address the right.

GLOVO expresses its disagreement with this course of action by the Agency for having directly indicated a sanctioning procedure instead of a guardianship procedure.

In this regard, this Agency wishes to emphasize that it does not consider that a response was not given to the complainant, but rather that the exercise of the right was not duly addressed (i.e., the information regarding their personal data was not provided), when it was GLOVO's responsibility to do so. And that there was also no obligation on the part of the interested party (the complainant) to inform the agent in question that their request had not been satisfied (which, on the other hand, was evident, since they had requested access to their personal data and the request had been denied).

Furthermore, this case does not concern whether GLOVO's response to their request was satisfactory to the interested party (the complainant), but rather, it simply concerns confirming that GLOVO did not comply with the obligation established in Article 15 of the GDPR to duly address the exercise of the complainant's right of access to their personal data, as requested, which has also not been rejected by GLOVO itself.

Regarding the reference to PS/00197/2019, it is a completely different case from the present one.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

41/66

To begin with, this is a sanctioning procedure for failing to comply with the order issued in the favorable resolution dated July 12, 2018, of the rights protection procedure TD/01105/2018 against the respondent, which originated from a complaint filed with this Agency on May 3, 2018, regarding a request for the cancellation of personal data (deletion of the complainant's image from a YouTube video) dated March 5, 2018, which did not receive a response. That is to say, this is not a sanctioning procedure for failing to properly address a request for the exercise of rights, but rather a sanctioning procedure was initiated for failing to demonstrate compliance with the order issued in a previous procedure. Furthermore, as is evident, at the time of the events, the GDPR was not even applicable, but rather the infringed regulation was the repealed LOPD.

On its part, the rights procedure PD/00018/2024 originates from a complaint regarding the right of access to the medical history of the complainant, which did not receive a response, and in which, in addition to the GDPR, Law 41/2002, of November 14, which regulates the Basic Law on Patient Autonomy and Rights and Obligations in Information and Clinical Documentation Matters, is applicable.

This Agency is unaware of what causes GLOVO such surprise regarding this procedure, which is nothing more than a typical situation of an access right not attended to within the due timeframe, after which the interested party files a complaint with the AEPD, which forwards the complaint to the respondent, the respondent does not respond to this transfer (which is not mandatory, it should be noted), the complaint is admitted for processing, and at the same time, the respondent is granted 10 days to present allegations (following the provisions of the LOPDGDD), ultimately leading to a favorable resolution ordering the respondent to duly address the request of the complainant. It is not the case that this Agency was granting the respondent more and more time to address the request of the complainant without reason; rather, this Agency must follow a series of steps established by the LOPDGDD as a guarantee for the party against whom the complaint is made, in order to issue a resolution that upholds the complaint presented.

Regarding the possibility of this Agency having initiated a sanctioning procedure instead of a rights procedure, in no case does the regulation require, in the event of a rights exercise not duly attended to, to initiate a so-called "rights procedure" instead of a sanctioning procedure. Nor to follow a specific order, initiating a rights procedure first and then, upon its conclusion, starting a sanctioning procedure. On the contrary, these are two independent pathways that can occur simultaneously or alternatively. In the present case, the non-compliance with Article 15 of the GDPR by GLOVO has been established, which is why a sanctioning procedure has been processed.

In this regard, it is worth mentioning the Judgment of the National Court 3432/2009 of June 18, 2009, fully extrapolable to the present case, in which it is stated: "(...) E-Business argues, in the complaint, that in the event of the denial of the complainant's right of access to their personal data, the AEPD cannot directly order the initiation of a sanctioning file, but must initiate the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

42/66

proceedings for the protection of rights provided for in RD 1332/1994 (in force until April 18, 2008), in

order to guarantee such access and resolve it within six months, and, if the resolution is favorable, to make the repeated access effective within ten days.

Thus, this Agency has been pronouncing in the proceedings for the protection of rights whose resolutions are attached as documents 1 to 14 with the complaint, which is why, given the evidence that the AEPD has not followed the legally established procedure, we are faced with the nullity of full right established by article 62.1.e) of Law 30/1992.

Indeed, it is article 18.2 of the LOPD that under the designation "protection of rights" indicates that the interested party who is denied, totally or partially, the exercise of the rights of (among others) access, may inform the AEPD, which must ensure the appropriateness or inappropriateness of the denial. Adding ordinal 3 of the same article 48 that the maximum period in which an express resolution of the protection of rights must be issued will be six months and the following 48.4 that, against the resolutions of the AEPD, a contentious-administrative appeal will proceed.

Based on this, it is true that in most cases where an individual reports to the AEPD the non-compliance with the right of access exercised by him, said Administration initiates the proceedings for the protection of rights, currently regulated in articles 115 to 119 of RD 1720/2007, of December 21, as seems to have been done in the fourteen proceedings whose resolutions the acting entity attaches as documentary evidence.

It is also true that the sanctioning procedure provided for in article 48 of the same LOPD, which can be initiated ex officio based on the infractions provided for in article 44 of said LO 15/1999, among others, for preventing or obstructing the exercise of the rights of access and opposition (Art 44.3.e) is a procedure that is completely different from that of the protection of rights, and with a different purpose, since while the latter aims to guarantee or protect the indicated personal rights (of access, opposition, rectification, and cancellation) for the benefit of the holders of personal data, the sanctioning procedure seeks to determine and sanction the infractions committed and resulting from the non-compliance with the Data Protection Law.

The clear distinction between such proceedings for the protection of rights and sanctioning was already noted in the SAN 11-5-2001 (Rec. 12/2000), which reasons that one thing is the procedure regulated in Art. 17 of RD 1332/1994, which is established to guarantee the rights of access, rectification, and cancellation, through the creation of a complaint system that the AEPD resolves, being its resolution appealable in contentious-administrative proceedings; and another very different thing is the opening of a sanctioning procedure, which can even be initiated ex officio, and for which Art. 47 of LO 5/1992 (Art. 48 LOPD) enables, developed by Art. 18 of RD 1332/1994. These are two distinct procedures, which obey different purposes, so there can be no violation of the principle non bis in idem nor of the principle of legal certainty.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

43/66

In similar terms, our SAN 26-1-2006 (Rec. 441/2004) indicates that although the guardianship procedure is not a sanctioning procedure, it can have, and indeed has on occasions, sanctioning significance for the individual concerned. When the Administration considers a claim, as is the case here, it is declaring that the effectiveness of one of the rights affecting the essential core of the fundamental right recognized in Article 18.4 of the Constitution - the habeas data or habeas scriptum - has been denied. Among the serious infringements listed in Article 44 of Law 15/1999 is the act of preventing or obstructing the exercise of the rights of access and opposition and the refusal to provide the requested information, which means that the Administration's declaration may result in the initiation of a subsequent sanctioning procedure.

FOURTH.- What is raised in this litigation by E-Business, however, is not the distinction and compatibility of both procedures provided for in the LOPD but whether, in the absence of a response to one of such rights (access, cancellation, and rectification) by the data controller, the AEPD must necessarily resort to the guardianship procedure for rights or can also alternatively, or even simultaneously, initiate a sanctioning procedure.

It has been the SAN, Section 1, 14-12-2006 (Rec. 165/2005) that has resolved the dilemma, declaring that the initiation of a guardianship procedure for the rights of the affected party does not preclude the imposition of a sanction, as both avenues can proceed in parallel.

The appellant there had filed a complaint with the AEPD against a Savings Bank for lack of any response to the exercise of the right of access to their data.

The AEPD issued a resolution declaring the closure of proceedings regarding the infringement of Article 15 of the LOPD, understanding that the protection of the right of access is achieved through the guardianship procedure for rights provided for in LO 15/1999, and not through the imposition of sanctions. The contentious-administrative appeal against said resolution was upheld by the aforementioned judgment, which orders the retroaction of the procedure so that the Agency issues the corresponding resolution regarding the violation of the indicated right of access under Article 15 of Organic Law 15/1999.

The Chamber, after reiterating its doctrine that there does not seem to be a greater impediment to the exercise of the right of access than absolute neglect (lack of response) to it, rendering said right useless or completely ineffective, concludes that the right that assists the appellant under Article 17.1 of RD 1332/1994, consisting of requesting the AEPD to initiate the guardianship procedure for rights, is not incompatible with the imposition of sanctions for the failure to provide information.

(...) It is necessary to point out, concludes the same judgment, that in the petition of the complaint submitted by the appellant, there was an express mention of the possibility that the guardianship procedure for rights could be initiated; however, the Agency chose to initiate only one procedure, the sanctioning one, and what makes no sense now is to compel the appellant to initiate a new guardianship procedure when there has been a serious neglect by the credit institution of its obligations regarding data protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

44/66

Doctrine fully applicable to the current litigation and which prevents this Chamber from addressing the claim of E-Business considering that it has been proven in the proceedings that the complainant requested access to their personal data from said entity on the dates of 24-11-2005, 12-12-2006, and 27-12-2006, access requests that are not recorded as having been answered by such appellant. (...) In any case, in the present instance, this is a claim filed by a citizen of a Member State of the European Union, regarding cross-border processing carried out by a data controller located in another Member State, which affects citizens of more than one Member State of the European Union. Therefore, Article 60 of the GDPR obliges the aforementioned Member States to reach a consensus regarding the possible decision to be adopted concerning such a claim.

In the present case, the procedure established in the GDPR has been followed, and an agreement has been reached with all the involved authorities to initiate sanctioning proceedings against GLOVO, with the scope outlined in this document.

For all the above reasons, the present allegation is dismissed.

FOURTH.- ON THE FAILURE TO REFER THE COMPLAINT TO THE DATA PROTECTION OFFICER
GLOVO claims that it is surprising that the AEPD did not apply in this case the possibility offered by the LOPDGDD to refer any complaint to the data protection officer before resolving on its admissibility, in accordance with Article 65.

It adds that the AEPD knows that the Data Protection Officer of GLOVO, as well as the Data Protection Department that he/she directs, has always intended to collaborate with any procedure or inspection carried out by this Agency. It argues that, in this case, prior communication to the Data Protection Officer would have allowed for the information to be provided to the complaining party more swiftly (given that the AEPD became aware of the complaint through the IMI system on February 24, 2022). Furthermore, it could have maintained a dialogue regarding the causes of the case and the mechanisms implemented by GLOVO to prevent similar cases in a more constructive manner than through a sanctioning procedure (again, not even a rights protection procedure), in which the AEPD

does not take into account at all the work done by GLOVO.

In any case, GLOVO indicates that it is aware that Article 65.4 of the LOPDGDD only provides the AEPD with the power to carry out this action, without it being mandatory in any case.

In this regard, this Agency wishes to point out that the possibility established in Article 65.4 of the LOPDGDD for this Agency to refer the complaint to the data protection officer refers to complaints filed with the Agency.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

45/66

Spanish Data Protection Agency, in accordance with Article 65.1 of the LOPDGDD.

In this case, the complaint was filed with the data protection authority of Poland, that is, the AEPD acted as a result of the communication sent by the supervisory authority of another Member State of the European Union, as established in Article 65.5 of the aforementioned LOPDGDD, so the transfer of the complaint to GLOVO before the admission of the said complaint was not possible.

In any case, as GLOVO itself has acknowledged in its allegations, the possibility of transferring the complaint to the Data Protection Officer established in Article 65.4 of the LOPDGDD is a power of the AEPD to carry out this action, and it is not mandatory in any case.

Therefore, this allegation is dismissed.

FIFTH.- ON THE GUILT OR NEGLIGENCE OF GLOVO

GLOVO indicates that the AEPD alleges that “the negligent action of the employee does not exempt the defendant from liability,” relying on the Judgment of the Supreme Court No. 188/2022 (Contentious Chamber, Section 3), of February 15, 2022 (rec. 7359/2020).

However, the AEPD overlooks a key element, which is that, in this case, the request made by the complainant was not made through the official channels communicated to the interested parties, but rather through a support chat for the delivery person that, as explained, is not intended to address the rights of the interested parties.

In this regard, this Agency wishes to emphasize that it is not the obligation of the interested party to direct their requests for the exercise of rights through the channel preferred by the responsible data controller. Furthermore, this Agency considers that the channel used in this case by the complainant, a channel that GLOVO itself provides to the delivery persons as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery persons. And it was GLOVO's obligation to properly address such a request, forwarding the request to the Department that the company determined as the most suitable to provide a proper response, if applicable, or as the company deemed best.

GLOVO argues that having made the request for access to their personal data through a support chat for the delivery person is key when evaluating the company's guilt regarding the management of rights, since it is not here, in its opinion, evaluating whether an agent with functions of addressing data protection rights has fulfilled their obligations or not, and therefore, it can be directly linked to the legal good protected by the norm. Rather, it is, in its judgment, a department with different functions, which has internal rules to ensure that the Data Protection Department can comply with the obligations of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

46/66

In this regard, GLOVO cites Guidelines 01/2022 on the rights of data subjects, which indicate that “Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated [...]”.

Regarding this citation, GLOVO states that the AEPD indicates that the channel used by the

complainant is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the couriers, adding that it was GLOVO's obligation to establish the necessary internal mechanisms to ensure that such requests for rights were forwarded to the channels that the company determined to be the most suitable for providing an appropriate response.

Furthermore, the AEPD adds that "In this regard, this Agency wishes to point out that it is not enough for the data controller (in this case, the party being complained against) to have protocols in place to eliminate intentionality or negligence in their actions. Rather, it is the obligation of the data controller that such protocols are known and followed by all its employees."

GLOVO understands that it has already demonstrated, with all the information and documentation provided in the allegations to the initiation agreement of the present sanctioning procedure, that the necessary internal mechanisms existed and had been communicated effectively.

It adds that this fact is further evidenced by the submission of the action protocol that the agents responsible for providing customer support services, managed by the Live Ops Department, were required to follow in case of receiving GDPR rights requests (DOCUMENT 1 of the present allegations) and the training conducted by GLOVO's Data Protection Department for the Live Ops Department, the team responsible for managing customer support agents, where the management of data protection rights of its users (including couriers) by the agents was explained in particular (DOCUMENT 2 of the present allegations), without prejudice to other documents submitted throughout the procedure.

GLOVO indicates that it is unaware of any other way to demonstrate their existence and communication, or their effectiveness, but what is evident, in its opinion, is that the AEPD cannot expect GLOVO to make disproportionate and unreasonable efforts by individually and daily following up with each agent in the courier support department to ensure they comply with their procedures. Nor can it be expected that, by having communicated an internal procedure and clear instructions, an employee cannot make a human error in its application, precisely because it involves a human and not an automated technological system.

In this regard, this Agency wishes to emphasize that the channel used in this case by the complainant, a channel that GLOVO itself provides to couriers as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the couriers. And it was GLOVO's obligation to duly address such a request, forwarding the request to the Department that the company determined to be the most suitable to provide an appropriate response, as it deemed fit.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

47/66

And it cannot be understood in the present case that a delivery person addressing the Customer Service, a channel intended to receive requests from delivery persons, in order to request a right of access to their personal data, is not an appropriate channel for this purpose, as has already been extensively explained.

It is reiterated that at no time do the aforementioned Guidelines 01/2022 require interested parties to direct their requests for the exercise of rights solely and exclusively through the preferred channel for this purpose, nor even to seek it either at the initial moment or at a later moment, nor when the company indicates that it cannot provide such information. Despite GLOVO's attempt to dissociate itself from the response provided by its Customer Service Department to the claiming party, as if it were not a response given by the company itself, this is not the case: it has been GLOVO, through its Customer Service Department, that has denied the information requested by the claiming party.

Moreover, supposedly the request from the claiming party had been transferred to another department, as indicated in its response to the claiming party on August 26, 2021. In any case, if the reason for such denial was that this Department was not authorized to provide it, but there was another department authorized to do so, that information was also not provided to the claiming party.

What the aforementioned Guidelines 01/2022 do require, as GLOVO acknowledges, is that "Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated [...]".

This Agency insists that Recital (59) of the GDPR states that: “Mechanisms must be put in place to facilitate the exercise by the data subject of their rights under this Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and its rectification or erasure, as well as the exercise of the right to object. The data controller must also provide means for requests to be submitted electronically, in particular where personal data are processed by electronic means. The data controller must be obliged to respond to requests from the data subject without undue delay and at the latest within one month, and to explain their reasons in case they do not comply.”

In this regard, it cannot be understood that only those requests for the exercise of rights that are made solely through the channels established by the data controllers in their privacy policies will be attended to. On the contrary, each data controller has the authority to organize itself as it sees fit, as long as a satisfactory response is provided to the exercise of the rights requested by the data subjects, within the legally established timeframe. However, the organization that this data controller may have foreseen cannot be an obstacle to the satisfaction of a right that the GDPR recognizes to the data subjects.

In the present case, GLOVO had decided to centralize all requests for the exercise of rights at the address gdpr@glovoapp.com. However, the fact that a specific request is directed through a different channel does not imply that it should not be duly responded to, as the data controller in question.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

48/66

In this case, it cannot be denied that by communicating through the channel provided for addressing incidents of the delivery personnel, the complaining party could reasonably expect that their request would be attended to. Moreover, it seems reasonable to this Agency that the complaining party communicated with GLOVO through this channel, which is specifically intended for requests from delivery personnel. On the contrary, this Agency considers that, in any case, it was GLOVO's obligation to properly attend to the request of the complaining party, whether the customer service (to the delivery personnel) forwarded that request through the relevant channels to the department dedicated to this type of requests, or as the company deemed appropriate.

In this regard, in section 53 of the aforementioned Guidelines 01/2022 on the rights of data subjects - Right of access, the EDPB “...encourages data controllers to provide the most appropriate and easy-to-use communication channels, in accordance with Article 12, paragraph 2, and Article 25, to allow the data subject to make an effective request. However, if the data subject makes a request through a communication channel provided by the data controller that is different from the one indicated as preferable, the request will generally be considered effective, and the data controller must process that request accordingly (see the examples below). Data controllers must make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated (for example, if the data subject sends the request data to an employee who is on leave, an automatic message informing the data subject about an alternative communication channel for their request could be a reasonable effort).”

Therefore, this Agency insists that the channel used in this case by the complaining party, a channel that GLOVO itself provides to the delivery personnel as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery personnel. And it was GLOVO's obligation to properly attend to such a request, forwarding the request to the Department that the company determined to be the most suitable to provide a proper response, if applicable, or as the company deemed best.

Section 56 of the aforementioned Guidelines cites as an example a case in which “a data controller X provides, on its website and in its privacy policy, two email addresses – the general email of the data controller: contacto@X.com and the email of the data protection contact point of the data controller: solicitudes@X.com. Additionally, the data controller X indicates on its website that for any inquiries or requests regarding the processing of personal data, one should contact the data protection contact

point at the indicated email address. However, the data subject sends a request to the general email of the data controller: contacto@X.com. In this case, the data controller must make all reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact point and be responded to within the timeframe established by the GDPR. Furthermore, the data controller...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
49/66

The processing cannot extend the deadline for responding to the request, solely because the interested party has sent a request to the general email of the data controller and not to the data protection contact point.”

In this regard, this Agency understands that precisely the first example in section 56 of the aforementioned Guidelines is the case that occurred in the present instance. The interested party (the complaining party) has submitted their access request through a generic channel provided by the company to which it is addressed. Therefore, the data controller (GLOVO) should have made all “reasonable efforts to ensure that its services are aware of the request, which was made through the general email, so that it can be redirected to the data protection contact point and responded to within the timeframe established by the GDPR,” as indicated in the aforementioned Guidelines, so that such a request could be redirected to the appropriate data protection contact point in order to be addressed within the timeframe established by the GDPR. Therefore, this Agency considers that the complaining party could “reasonably expect” that their request would be attended to.

Regarding GLOVO's claim that the AEPD cannot expect the company to make disproportionate and unreasonable efforts by individually and daily pursuing each agent in the delivery support department to ensure they comply with their procedures, at no time has this Agency asserted such a thing. It is not about the data controller making disproportionate and unreasonable efforts, but rather that the company must ensure that requests for the exercise of rights are properly addressed. Expecting a Customer Service Department to process such a request appropriately is neither disproportionate nor unreasonable, as it is a channel intended for receiving requests of all kinds. For this reason, agents must be able to identify, channel, and provide a proper response to such requests, which has not occurred in the present case.

GLOVO argues that in the sanctioning activity of the AEPD, it is being assumed that when an interested party requests a right through a channel that is not specifically provided by the company for that purpose, the obligation to arbitrate the necessary internal mechanisms results in an obligation of outcome, while both the aforementioned guidelines and the GDPR itself configure it as an obligation of means, just as is the case with security measures, an aspect that is precisely addressed in the previously referenced STS 188/2022.

GLOVO explains that the GDPR establishes in its Article 12 that “The data controller shall take appropriate measures to facilitate to the interested party [...] any communication in accordance with Articles 15 to 22,” and continues to indicate that “The data controller shall facilitate the exercise of rights to the interested party under Articles 15 to 22.”

And that this is also resolved by the aforementioned STS 188/2022 in its legal basis THIRD in relation to security measures, equally extrapolable to the technical and organizational measures that the data controller establishes for the attention of data protection rights of the interested parties:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
50/66

"The obligation to adopt the necessary measures to ensure the security of personal data cannot be considered an obligation of result, which implies that once a personal data breach occurs to a third party, there is liability regardless of the measures adopted and the activity carried out by the data

controller or the processor."

It is alleged that GLOVO (i) has taken the appropriate measures to facilitate communication with the data subject, and (ii) facilitates the exercise of rights by the data subject.

It understands that the interpretation of Article 12, along with Guidelines 01/2022, cannot lead to any other consideration than that, especially when a request has been sent to a department that is not the appropriate one to address the rights of the data subjects, the only obligation that the data controller has is to ensure the implementation ("arbitrate," in the words of the Guidelines) of the necessary internal mechanisms for the request to be forwarded to the appropriate channels for response.

Therefore, it is a duty of means, in these cases, and not of result, in relation to compliance with Article 15 of the GDPR. GLOVO claims that it was not the function of the Customer Service Department to provide the delivery person with a response to the right of access, which was indeed indicated to the complainant, informing them that they could not provide such information.

In this regard, this Agency wishes to point out that at no time has this Agency claimed that compliance with Article 15 of the GDPR is an obligation of result, far from it.

However, this Agency insists that it is not the obligation of the data subject to direct their requests for the exercise of rights through the channel preferred by the data controller. And this Agency considers that the channel used in this case by the complainant, a channel that GLOVO itself provides to the delivery persons as a suitable means to contact it, is a perfectly valid means to request the exercise of the rights recognized in the GDPR by the delivery persons. And it was GLOVO's obligation to duly address such a request, forwarding the request to the Department that the company determined as the most suitable to provide a proper response, in its case, or as the company deemed best.

Regarding GLOVO (i) having taken the appropriate measures to facilitate communication with the data subject, and (ii) facilitating the exercise of rights by the data subject, this Agency understands that these statements refer to the channel established as the preferred means, since it insists on numerous occasions that the Customer Service is not the suitable means to exercise such rights, even though its own documents intended for that area provide for such requests to take place.

This Agency considers that having responded in this case to the complainant that the requested data could not be provided, without giving further information in this regard, cannot be understood, especially, as GLOVO having "facilitated communication with the data subject" nor "the exercise of their rights."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

51/66

This Agency wishes to emphasize that it does not consider that a response was not provided to the claiming party, but rather that the exercise of the right was not properly attended to (i.e., the information regarding their personal data was not provided), when it was GLOVO's obligation to do so. GLOVO continues to argue that it cannot be considered otherwise when this case depended precisely on the actions of a person, where it is not possible for the regulation to establish an obligation of result, given that there are countless reasons that can lead to an error. GLOVO explains that human error is something well-known and empirically studied. In any human activity, environmental, personal, and statistical factors converge that shape the probability level of an error occurring. This risk can be calculated using a simple mathematical formula. In fact, human error is so human that the Ministry of Labor and Social Affairs has had a series of technical notes on human reliability for over 25 years, among which are NTP 360, on basic concepts, NTP 377, which studies different analysis methods, and NTP 401, on quantification methods. Three technical notes dedicated exclusively to human error. GLOVO claims that it is indeed a specific error in the management of a ticket that dealt with different incidents, in which a response was accepted that, although it was a response, was not the one expected by the interested party or by GLOVO's own regulations. It explains that this is not an error in an information system, or a mechanical valve that must be opened or closed, nor a systemic failure or one resulting from corporate negligence. Rather, it was an error made by a person, errors that occur in any company, which are unpredictable and cannot be controlled or prevented. Just as happens with

security measures when, having applied those deemed appropriate, they prove ineffective against a cyberattack carried out by cybercriminals who have obtained access credentials to the systems through a prior phishing attack, allowing them to access legitimately without being detected by security systems, firewalls, antivirus, successfully perpetrating the security incident.

GLOVO explains that in the present case, there may be thousands of factors that imperceptibly affect the human being and cause an error in the execution of their obligations. Stress, fatigue, external aspects of their private life, repetition, are factors that can lead a person to make a mistake. And the error that cannot be foreseen or prevented simply happens, but definitely, this error that resulted in the interested party receiving insufficient information (they were told that the information could not be provided, but they were not redirected to the Data Protection Department) cannot constitute a sanctionable fact for the responsible party, and even less so when GLOVO (i) developed internal procedures, general data protection procedures, and specific data management procedures in LiveOps for the attention to the rights of the interested parties, (ii) trained the delivery personnel department on data protection and the attention to rights, and (iii) made available to all interested parties multiple ways to ensure they could obtain information on how to exercise their data protection rights (delivery contract, privacy policy, delivery portal, legal texts in the application, website...).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

52/66

Furthermore, GLOVO reminds that it should not be forgotten the numerous volume of requests for the exercise of rights as well as for the resolution of inquiries and incidents that it receives, whose percentage of successful attention is very significant.

In conclusion, GLOVO states that, as has been evidenced, this is a matter of an obligation of means, as deduced from the regulations and Guidelines 1/2022, and because it cannot be otherwise, the company took all reasonable and necessary measures to ensure that the agents knew they had to redirect these requests to the Data Protection Department. However, in this case, it simply did not happen due to human error, equivalent to a zero-day vulnerability in a computer system. And that this is not foreseeable, nor can it be prevented or avoided.

GLOVO does not dispute that the request was not sent to the Data Protection Department.

But it argues that this infringement is not related to compliance with the GDPR, but rather to GLOVO's internal regulations, caused by a human error of an employee that, in no case, can be attributed to the responsible party or lead to legal liability on their part. And that GLOVO adopted technical and organizational measures and deployed diligent activity in the implementation and use of these to achieve the expected result, hoping that the diligence of its employees would facilitate this.

In this regard, this Agency wishes to emphasize that it does not consider that the claimant was not given a response, but rather that the exercise of the right was not duly attended to (i.e., the information about their personal data was not provided), when it was GLOVO's obligation to do so.

As for the fact that in this case it was a specific error of an employee, this Agency wishes to remind that, as stated in the proven facts of this resolution, on August 19, 2021, at 12:31 hours, the claimant sent a communication to the Customer Service Department with the following content (in Polish the original, unofficial translation): "Good morning, please send me the conversation with (...), B.B.B., to my email address, as it will be the basis of my court case; if that does not happen, I will send you a court order."

That is to say, they made a first request for access to their personal data (in this case, the recordings of their conversation with a ***POSITION.1). GLOVO seems to overlook in its allegations this first request from the claimant, but the fact that it does not cite Article 15 of the GDPR does not prevent its content from being that of a request for access to the personal data of the claimant.

In response to this request, the company replied to the claimant on August 19, 2021, at 15:30 hours in Polish, with the following content (unofficial translation): "Good morning, thank you for contacting Glovo. Unfortunately, we cannot share with you the conversation or its fragments. Please let us know what your problem is with our ***POSITION.1. Best regards, Glovo Customer Service."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
53/66

In light of the company's refusal to provide such information, and following a series of conversations on other matters, on August 26, 2021, at 07:56 hours, the claimant requested again from the Customer Service Department of GLOVO that certain information from August 17, 2021, regarding themselves be provided, this time based on Article 15 of the GDPR.

On August 26, 2021, the claimant was informed that their case had been transferred to another department, and on September 3, 2021, at 12:36 hours, they were informed that the requested information could not be provided.

On September 3, 2021, the claimant indicated that they had made a mistake in requesting information about themselves from August 17, 2021, and that what they wanted was information from August 19, 2021.

And again, the company informed them on September 6, 2021, that it could not provide such information.

That is to say, in three different communications (on August 19, August 26, and September 3), the claimant had requested access to their personal data. And three times GLOVO responded that it could not provide such access, without giving further information in this regard. GLOVO itself has acknowledged this in its allegations.

Moreover, on September 3, 2021, at 12:36 hours, the claimant received an email from support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation):

"Good morning, Unfortunately, we cannot share this information with you. Can you specify exactly what you are requesting? We remind you that opening several chats may slow down your service time. We ask that you use a single chat for this request. Regards, Glovo Customer Service Team."

This Agency understands that it cannot be considered that a human error occurred in this case due to "stress, fatigue, external aspects of their private life, repetition..."

On three distinct occasions, on three different days, and even having analyzed the matter by two different departments (the claimant's request had been transferred to another department, according to the company), GLOVO's response had always been the same: that it could not provide the claimant with such information, when it was indeed GLOVO's obligation to provide it.

GLOVO cites here Procedure PD/00078/2023, regarding the resolution of rights procedures, which addresses, among other things, the obligation to respond to the request through any channel:

"The aforementioned rules (NOTE: Articles 15 to 22 GDPR and 12 LOPDGDD) do not allow the request to be overlooked as if it had not been made, leaving it without the response that those responsible must necessarily issue, even in the event that there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of deficiencies."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
54/66

observed or, where appropriate, deny the request with justification indicating the reasons why the right in question cannot be considered." In this regard, GLOVO indicates that a response was indeed given, and the claimant was informed that the requested information could not be provided, which only further emphasizes that the company has implemented the necessary internal mechanisms for the agents of the Customer Service Department who support the courier to know that they cannot address the rights of the interested parties and that the request would be forwarded to the Data Protection Department where such information could indeed be requested, as required by the internal mechanisms implemented by GLOVO, both at the level of internal regulations and through training initiatives for its employees (see the documents "Protocol for Action in the event of GDPR requests from Glovo users,

couriers or any data subject" or "Training GDPR - Live Ops 2021," both submitted in the present procedure in GLOVO's previous response to the AEPD, and which are again submitted as DOCUMENTS 1 and 2 of the present allegations). However, due to human error, this was not done in the case of the claimant.

GLOVO also claims that in the aforementioned procedure PD/00078/2023, the respondent was not sanctioned, but rather was given a period of 10 days to address the requested right of access. In this regard, this Agency wishes to insist that it does not consider that a response was not given to the claimant (as in the case of PD/00078/2023), but rather that the exercise of the right was not properly addressed (i.e., the information regarding their personal data was not provided), when it was GLOVO's obligation to do so.

Moreover, regardless of the measures adopted by GLOVO, in the present case, the claimant made numerous communications requesting their right of access to the data concerning them, even referencing Article 15 of the GDPR, a request that was not properly addressed.

Regarding the claim of "human error," this Agency reiterates that it cannot be considered such to have responded that the requested information was not provided to the claimant on three different occasions, on different days, and having been analyzed by two different departments of the company. Furthermore, this Agency does not understand why GLOVO cites in its allegations the PD/00078/2023 in which the right of the claimant to access the recordings of their conversations with the respondent company is precisely recognized and the claim is upheld, ordering the respondent to provide the requested access.

As for the assertion that in that case a decision was made not to initiate a sanctioning procedure, this Agency reiterates that in no case does the regulation require, in the event of a duly unaddressed exercise of rights, to initiate a so-called "rights procedure" instead of a sanctioning procedure. Nor to follow a specific order, initiating a rights procedure first and then, upon its conclusion, starting a sanctioning procedure. On the contrary, these are two separate avenues.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
55/66

independent from one another, which may occur simultaneously or alternatively.

Ultimately, GLOVO understands that it is not appropriate to consider the company's liability, whether for negligence or fault, regarding the incorrect or insufficient response to the claimant, given that:

- 1) It was a request made through a generic channel provided by GLOVO for addressing incidents in the provision of services by the couriers.
- 2) GLOVO had implemented appropriate internal mechanisms to ensure that the request received through this channel was forwarded to the appropriate channel for response, namely the Data Protection Department.
- 3) The obligation to implement such mechanisms can only be regarded as an obligation of means, and not of result.
- 4) The implementation of these mechanisms, duly accredited, represents reasonable efforts to ensure that its services are aware of the request, as argued by the AEPD in its Proposal for Resolution, and proposed in Guidelines 1/2022.
- 5) The agent responded to the interested party informing them that they could not provide the requested information.
- 6) GLOVO has a specific channel for the request of data protection rights, which is communicated through numerous channels and documents, including the contract signed by the courier or the specific application and web environment for couriers, so the interested party could easily access this channel.

Therefore, GLOVO argues that the incomplete response by the agent who attended to the claimant, who did not provide the address of the Data Protection Department, or did not directly send the request to this department, can only be categorized as a human error that, as explained earlier, arises from (i) the belief that they had responded to the request by informing them that they could not provide that

information, and (ii) from properly addressing the other incidents reported by the interested party, in accordance with the functions they did have in their role within the Customer Service Department to support the courier.

In this regard, this Agency reiterates that:

- 1) The channel used by the claimant is a perfectly valid means to exercise a request for access to their personal data.
- 2) Regardless of the measures adopted by GLOVO, in this case, the claimant made numerous communications requesting their right of access to data about themselves, even referencing Article 15 of the GDPR, a request that was not duly addressed.
- 3) This is not an obligation of result. However, it is not the obligation of the interested party to direct their requests for the exercise of rights through the channel preferred by the data controller. It was GLOVO's obligation to duly address such a request, forwarding the request to the Department that

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
56/66

the company determined as the most suitable to provide an adequate response, in its case, or as the company deemed best.

- 4) It is not a matter of the data controller making disproportionate and unreasonable efforts, but rather that the company must ensure that requests for the exercise of rights are duly addressed. Expecting a Customer Service Department to process such a request appropriately is neither disproportionate nor unreasonable, as it is a channel intended for receiving requests of all kinds. For this reason, agents must be able to identify, channel, and provide an adequate response to such requests, which has not occurred in the present case.
- 5) It is not considered that the claimant was not given a response, but rather that the exercise of the right was not duly attended to (i.e., the information regarding their personal data was not provided), when it was due to GLOVO.
- 6) It is not the obligation of the interested party to direct their requests for the exercise of rights through the channel preferred by the responsible data controller.

Finally, this Agency reiterates that what occurred in the present case cannot be classified as a "human error" for having responded that the requested information was not provided to the claimant on three different occasions, on different days, and having analyzed the matter by two different departments of the company. Furthermore, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its judgment 76/1990, of April 26, the Constitutional Court has declared that objective or faultless liability cannot be applied in the administrative sanctioning sphere, a doctrine that is reaffirmed in judgment 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions for mere results is excluded, without proving a minimum level of culpability even in terms of mere negligence. However, the way of attributing responsibility to legal entities does not correspond to the forms of culpability that are imputable to human conduct."

Thus, in the case of violations committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011 (cassation appeal in the interest of law 48/2007), it is necessarily applied differently than it is for natural persons.

According to STC 246/1991 "(...) this distinct construction of the attribution of authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be truly effective and the risk that, consequently, the legal entity must assume that is subject to compliance with that norm."

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec 1067/2006, that "although the culpability of the conduct must also be subject to proof, it must be

considered in
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
57/66

order to assume the corresponding burden, which ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the party claiming their non-existence; it is not enough, in summary, for exculpation against a typically unlawful behavior to invoke the absence of fault." In any case, as has been pointed out, the Judgment of the Supreme Court No. 188/2022 (Contentious Chamber, Section 3), dated February 15, 2022 (rec. 7359/2020) argues about the responsibility of legal entities in our legal system: "...It simply happens that, given that direct responsibility of legal entities is admitted in our Administrative Law, which therefore recognizes their capacity to infringe, the subjective element of the infringement is manifested in these cases differently than it is for natural persons, so that, as the constitutional doctrine we have previously mentioned indicates -SsTC STC 246/1991, of December 19 (F.J. 2) and 129/2003, of June 30 (F.J. 8)- direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective and by the risk that, consequently, the legal entity subject to compliance with that norm must assume." (the underlining is from this Agency).

Therefore, in the present case, the actions of the employees do not exempt GLOVO from its responsibility for such actions.

Finally, regarding whether the other issues related to the execution of services by the claiming party were resolved, this Agency has already insisted that this is not the subject of the present sanctioning procedure.

For all the above reasons, this allegation is dismissed.

SIXTH.- ON AGGRAVATING CIRCUMSTANCES

GLOVO makes some observations regarding the aggravating factors alleged by the AEPD:

1) The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages and losses they have suffered (section a): for the failure to respond to the request of the claiming party to exercise their right of access, from August 19, 2021, to November 14, 2022, once this Agency intervened.

GLOVO understands that this aggravating factor should not be considered, since (i) a response was indeed given, although it may have been insufficient or incomplete, as the department for the attention of the delivery person cannot provide the information requested by them, and (ii) if no response was given until November 14, 2022, it was because the IMI information exchange system is excessively slow, because the AEPD did not contact the Data Protection Officer in February 2022 before admitting the complaint for processing, and because even so, having been admitted in June, it did not convey the information request until November of that same year.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
58/66

Therefore, it requests that this aggravating factor not be taken into consideration or, if applicable, that the timeframes as computed by the AEPD not be considered, since everything could have been much faster.

In this regard, this Agency reiterates that it does not consider that a response was not given to the complainant, but rather that the exercise of the right (that is, the information about their personal data was not provided) was not duly attended to when it was the responsibility of GLOVO.

And that the complainant insisted on three occasions in their request for access to their personal data,

so GLOVO had several opportunities to provide such information, long before the complainant submitted their complaint or before such complaint was received by this Agency.

Regarding the fact that the Data Protection Officer was not contacted before admitting the complaint for processing, this Agency reiterates that the LOPDGDD provides for this possibility (which is not mandatory) only for complaints submitted directly to the AEPD, which did not occur in the present case.

In any case, this Agency wishes to emphasize that it is not the case that the request was not attended to "in time," but rather that such request would not have been attended to had this Agency not intervened, since access to their data was only provided to the complainant after they were requested information regarding the complaint.

2) The intent or negligence in the infringement (section b): GLOVO's conduct was severely negligent since the exercise of the right of access to personal data was not attended to despite the complainant insisting at least three times that they wanted the requested information to be provided.

GLOVO claims that it can in no case accept that its actions were severely negligent.

First, because, as it considers demonstrated, GLOVO implemented the appropriate mechanisms to ensure that the Customer Service Department, which provides support services to the delivery person, provided the address of the Data Protection Department to the interested parties, as required by the obligation of means in Article 12 of the GDPR or Guidelines 1/2022, being a human error of the agent who handled the case that generated the complaint that is the subject of this procedure.

Second, because, even if it were not the case (which it is), GLOVO understands that the complainant did not insist three times that they wanted the requested information to be provided. According to the documentation provided by the AEPD itself, there are only two messages that refer to the right of access, the first on August 26 at 7:56, indicating that they were requesting the conversation from August 17, along with other information related to the execution of their services, and a second request, on September 3 at 12:36, copying exactly the same previous request, but correcting the date of the requested conversation (initially indicating it was from August 17, and later correcting to indicate it is from the 19).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

59/66

of August. It is true that, in the documentation provided, the message from September 3 appears twice, but it is always the same message.

Furthermore, GLOVO highlights that both messages were sent with a 6-day interval between them, within the same case or ticket, so it cannot be considered as "insisted three times." It is the same request, made (to correct it) in duplicate within the month that GLOVO had to respond, therefore it cannot be considered here as reiteration or insistence of any kind.

Therefore, GLOVO requests that this aggravating factor not be taken into account as it is not applicable to this case.

In this regard, this Agency reiterates what has already been stated in the previous allegation, particularly that, regardless of the measures adopted by GLOVO, in the present case the claimant made numerous communications requesting their right of access to the data concerning them, even referencing Article 15 of the GDPR, a request that was not duly addressed.

At no time is there an intention to impose an obligation of result. However, it was GLOVO's obligation to duly attend to such a request, forwarding the request to the Department that the company determined to be the most suitable to provide an appropriate response, in its case, or as the company deemed best.

This Agency also does not intend for the data controller to make disproportionate and unreasonable efforts, but rather that the company must ensure that requests for the exercise of rights are duly attended to. Expecting a Customer Service Department to process such a request appropriately is neither disproportionate nor unreasonable, since it is a channel intended for receiving requests of all kinds. For this reason, agents must be able to identify, channel, and provide a proper response to such

requests, which has not occurred in the present case.

Regarding the number of times the claimant requested their data, this Agency reiterates that, as stated in the proven facts of this resolution, on August 19, 2021, at 12:31 hours, the claimant sent a communication to the Customer Service Department with the following content (in Polish the original, unofficial translation): "Good morning, please send me the conversation with (...), B.B.B., to my email address, as it will be the basis of my court case; if that does not happen, I will send you a court order." That is to say, they made a first request for access to their personal data (in this case, the recordings of their conversation with a ***POSITION.1). GLOVO seems to overlook this first request from the claimant in its allegations, but the fact that it does not cite Article 15 of the GDPR does not prevent its content from being that of a request for access to the personal data of the claimant.

In response to this request, the company replied to the claimant on August 19, 2021, at 15:30 hours in Polish, with the following content (unofficial translation): "Good morning, thank you for contacting Glovo. Unfortunately, we cannot share with you the conversation or its fragments. Please let us know what is...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
60/66

Your problem with our ***POSITION. 1. Best regards, Customer Service of Glovo."

Due to the company's refusal to provide such information, and after a series of conversations on other matters, on August 26, 2021, at 07:56 hours, the claimant requested again from the Customer Service Department of GLOVO that certain information from August 17, 2021, regarding themselves be provided, this time based on Article 15 of the GDPR.

On August 26, 2021, the claimant was informed that their case had been transferred to another department, and on September 3, 2021, at 12:36 hours, they were informed that the requested information could not be provided.

On September 3, 2021, the claimant indicated that they had made a mistake in requesting information about themselves from August 17, 2021, and that what they wanted was information from August 19, 2021.

And again, the company informed them on September 6, 2021, that it could not provide such information.

That is to say, in three different communications (on August 19, August 26, and September 3), the claimant had requested access to their personal data. And three times GLOVO responded that it could not provide such access, without giving further information in this regard. GLOVO itself has acknowledged this in its allegations.

Moreover, on September 3, 2021, at 12:36 hours, the claimant received an email from support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation):

"Good morning, Unfortunately, we cannot share this information with you. Can you specify what exactly you are requesting? We remind you that opening multiple chats may slow down your service time. We ask that you use a single chat for this request. Regards, Glovo Customer Service Team."

This Agency understands that it cannot be considered that a human error occurred in this case when on three different occasions, on three different days, and even having analyzed the matter by two different departments (the claimant's request had been transferred to another department, according to the company), GLOVO's response had always been the same: that it could not provide the claimant with such information, when it was indeed GLOVO's obligation to provide it.

Finally, this Agency wishes to point out that the fact that the claimant's communications with the company were made through the same ticket is not indicative of anything; it is simply a way for the company to organize itself, like any other.

Therefore, for all the reasons stated, this allegation is dismissed.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid

3) Any previous infringement committed by the data controller or the data processor (section e): On April 1, 2020, the Director of the AEPD signed the resolution of sanctioning procedure PS/00417/2019, in which GLOVO was fined €25,000 for the infringement of Article 37 of the GDPR. On March 7, 2023, the Director of the AEPD signed the resolution of sanctioning procedure PS/00209/2022, in which a warning was issued to GLOVO for the infringement of Article 13 of the GDPR, and GLOVO was fined €550,000 for the infringement of Articles 25 and 32 of the GDPR. GLOVO claims that it does not deny the existence of the previous sanctioning procedures, but it does consider it appropriate to remind the AEPD that they have nothing to do with the present case, either directly or indirectly, and that, on the contrary, it is not taking into account that among the cases managed by the AEPD related to the exercise of rights of the data subjects, it has never imposed a sanction on GLOVO. Therefore, it requests that this aggravating factor not be taken into consideration or, alternatively, that the fact that the AEPD has been aware of several complaints regarding the exercise of rights, without ever finding any reprehensible conduct in GLOVO's actions, be considered as a mitigating factor. In this regard, this Agency wishes to point out that the literal text of Article 83.2.e) of the GDPR states: "any previous infringement committed by the data controller or the data processor," without requiring that the aforementioned infringements be related to the infringement being evaluated. However, it cannot be denied that when determining a fine, a person who has never infringed the GDPR cannot be treated the same as someone who has. Likewise, the consideration when determining the fine for a specific infringement will not be the same if the same infringement has been committed on previous occasions or if it concerns other infringements. For GLOVO's reassurance, it is informed that all of this has been duly taken into account by this Agency when determining the sanction for the present procedure, which is why a fine of only 0.01% of the total annual turnover (€15,000 in relation to ***CANTIDAD.1 € of turnover, as stated in the proven facts) is imposed. Furthermore, due to an unintentional error on its part, this Agency has omitted in its assessment of the potential sanction in the present procedure the procedure PS/00372/2021 in which, by resolution of June 13, 2022, the Director of this Agency issued a warning to GLOVO for the infringement of Article 12 of the GDPR, for a right of erasure not duly attended to. Also due to an unintentional error on its part, this Agency did not take into account that in procedure TD/00268/2020, a favorable resolution was issued regarding the claim of the complainant for a request for access to personal data of the complainant that had not been duly addressed. For the reasons stated, this Agency can only dismiss the present allegation.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

62/66

IV

Right of access of the data subject

Article 15 "Right of access of the data subject" of the GDPR states:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed, and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as

to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on the administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In the present case, the complainant requested from GLOVO via an email to support@glovo.mail.kustomerapp.com on August 19, 2021, the conversation held with B.B.B.

On the same day, GLOVO's Customer Service team informed them that they could not share the mentioned conversation or its fragments, without justifying such denial.

After an exchange of emails between the complainant and GLOVO, on August 26, 2021, the complainant requested from GLOVO via email to support@glovo.mail.kustomerapp.com, based on Article 15 of the GDPR, to provide the record of the conversation with B.B.B. from August 17, 2021, the exact time they checked in that day and the actions of the employees who modified that data, information about an order canceled on August 17 along with the reasons for the cancellation and the actions of the employees who changed that data, and the work plan from August 17 regarding the system changes and GLOVO employees.

On August 26, 2021, at 20:09 hours, the complainant received an email from the address support@glovo.mail.kustomerapp.com in Polish, with the following content (unofficial translation):

“Hello, A.A.A.! Thank you for contacting us. Your case has been transferred to another department. Once we have a response, we will convey it to you. We hope this information is helpful, as we are always trying to provide the highest quality in our service. You can count on us. Thank you for your trust. GLOVO Customer Service.”

On September 3, 2021, GLOVO's customer service team responded again that they could not share the information requested by the complainant, without providing any justification.

On September 3, 2021, the complainant indicated that they had made a mistake and were requesting the information corresponding to August 19, 2021.

On September 6, 2021, GLOVO's customer service team insisted that they could not provide the information requested by the complainant, without providing any justification.

That is to say, on none of these occasions did GLOVO address the request for access to the personal data of the complainant.

Therefore, in accordance with the evidence available at this time of the sanctioning procedure resolution, it is considered that the known facts constitute an infringement, attributable to GLOVO, for violation of Article 15 of the GDPR.

V

Classification and qualification of the infringement of Article 15 of the GDPR

The aforementioned infringement of Article 15 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for imposing administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)”

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
64/66

For the purposes of the statute of limitations, Article 72 "Very Serious Offenses" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:
(...)

k) The obstruction or hindrance or the repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 (...)."

VI

Sanction for the violation of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing operation in question as well as the number of affected parties and the level of damage and harm suffered (paragraph a): for the failure to address the request of the complainant for the exercise of their right of access, from August 19, 2021, to November 14, 2022, once this Agency intervened.

- The intentionality or negligence in the infringement (paragraph b): GLOVO's conduct was severely negligent as the exercise of the right of access to personal data was not addressed despite the complainant insisting at least three times that they wanted the requested information to be provided.

As aggravating factors:

- Any previous infringement committed by the data controller or the processor (paragraph e): On April 1, 2020, the Director of the AEPD signed the resolution of sanctioning procedure PS/00417/2019 in which GLOVO was fined €25,000 for the infringement of Article 37 of the GDPR. On March 7, 2023, the Director of the AEPD signed the resolution of sanctioning procedure PS/00209/2022 in which a warning was issued to GLOVO for the infringement of Article 13 of the GDPR and GLOVO was fined €550,000 for the infringement of Articles 25 and 32 of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

65/66

Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and Corrective Measures" of the LOPDGDD:

As aggravating factors:

- The connection of the infringer's activity with the processing of personal data (paragraph b): The development of the business activity carried out by GLOVO requires continuous processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 15 of the GDPR, allows for the imposition of a sanction of €15,000 (fifteen thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on GLOVOAPP23, S.A., with NIF A66362906, for an infringement of Article 15 of

the GDPR, classified under Article 83.5 of the GDPR, a fine of €15,000.00 (FIFTEEN THOUSAND euros).

SECOND: TO NOTIFY this resolution to GLOVOAPP23, S.A.

This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

66/66

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es